



Medical Act 1978

CHAPTER 12

An Act to make provision for the constitution and functions of the General Medical Council and certain committees of the Council and to amend or provide for the amendment of the Medical Acts with respect to medical education, the registration of medical practitioners and their professional conduct and fitness to practise; and for purposes connected with those matters. A.D. 1978
[5th May 1978.]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The General Medical Council and the branch councils

1.—(1) The General Medical Council shall, on and after the succession day, be constituted as provided by Her Majesty by Order in Council subject to the provisions of this section and section 2 below. Constitution
of the
General
Medical
Council.

(2) The General Council shall consist of—

- (a) elected members ;
- (b) appointed members ; and
- (c) nominated members.

(3) The numbers of elected members, appointed members and nominated members shall be such that the number of the elected members exceeds the number of the appointed and nominated members.

(4) Elections of elected members shall be conducted in accordance with an electoral scheme under this subsection providing for the election of members for the following four constituencies, that is to say—

- (a) England, the Channel Islands and the Isle of Man ;
- (b) Wales ;
- (c) Scotland ; and
- (d) Northern Ireland.

(5) An electoral scheme shall be made, with the approval of the Privy Council, by the General Council after consultation with such bodies as appear to the General Council to be representative of medical practitioners.

(6) The persons qualified to elect the elected members for any constituency shall be those who, when the election is held—

- (a) are resident in the constituency for which the election is held ; and
- (b) are fully registered, provisionally registered or registered with limited registration ;

except that a person registered with limited registration shall not be qualified to vote at an election unless, during the four years preceding the election, he has been so registered for a period, or for periods which amount in the aggregate to a period, of not less than three years.

(7) A person shall not be qualified to be elected as an elected member unless he is fully registered, provisionally registered or registered with limited registration and, if registered with limited registration has, during the four years preceding the election, been so registered for a period, or for periods which amount in the aggregate to a period, of not less than three years, nor shall he be qualified to hold office as an elected member unless he is fully registered, provisionally registered or registered with limited registration.

(8) Appointed members shall be chosen by the universities and other bodies designated for the time being as appointing bodies by an Order in Council under this section, being universities or bodies of the following description, that is to say, universities or bodies in England, Wales, Scotland or Northern Ireland which have power to grant a qualification which is or has been registrable under Part II of the Medical Act 1956.

1956 c. 76.

(9) A person shall not be qualified to be chosen as an appointed member unless he is fully registered, provisionally registered or registered with limited registration and, if registered with limited registration, has, during the four years preceding his

appointment, been so registered for a period, or for periods which amount in the aggregate to a period, of not less than three years.

(10) Nominated members shall be nominated by Her Majesty on the advice of Her Privy Council.

(11) One member at least shall be nominated for England, for Wales, for Scotland and for Northern Ireland.

(12) Of the nominated members, a majority shall be persons who are neither fully registered nor holders of any qualification registrable under the Medical Act 1956 or this Act.

1956 c. 76.

(13) Subject to section 2(7) below, a person shall not be qualified to be a member of the General Council if he has attained the age of seventy years.

(14) Schedule 1 to this Act shall have effect in relation to the General Council, its proceedings, and its officers.

(15) This section has effect subject to the transitional provisions relating to Ireland contained in Schedule 2 to this Act and to the transitional provisions relating to practitioners with overseas qualifications contained in Schedule 5 to this Act.

(16) In this Act—

“appointed member” means a member of the General Council chosen by a university or other body designated as an appointing body under this section ;

“appointing body” means a university or other body having, under this section, power to choose an appointed member or members of the General Council ;

“elected member” means a member of the General Council elected under this section ;

“nominated member” means a member of the General Council nominated by Her Majesty under this section ; and

“the succession day” means the day appointed by an Order in Council under this section as the day on which the members of the General Council elected, appointed and nominated under this section are to take office in succession to the members of that Council elected, appointed and nominated under sections 2 to 4 of the Medical Act 1956 ;

and for the purposes of this section a person shall be taken to be resident at his address in the register.

2.—(1) The universities and other bodies to be designated initially in an Order in Council as appointing bodies shall be—

(a) those universities and other bodies which, at the passing of this Act, have power to choose an appointed member of the General Council under section 3 of the Medical Act 1956 ; and

Supplementary provisions as to the constitution of the General Medical Council.

(b) such other universities or bodies concerned with medical education as the Privy Council think fit ;

being universities or bodies of the description given in section 1(8) above.

(2) An Order in Council may give an appointing body the power to choose more than one appointed member or to choose an appointed member in combination with another appointing body or bodies.

(3) An Order in Council may contain such incidental, consequential, transitional or supplemental provisions as appear to Her Majesty to be necessary or expedient and an Order in Council which appoints or makes provision in relation to the succession day may include provision terminating on that day the offices of the members of the General Council holding office by virtue of sections 2 to 4 of the Medical Act 1956.

1956 c. 76.

(4) An Order in Council may, notwithstanding section 1(3) above, make provision permitting elections to fill casual vacancies among the elected members to be held together at such times as may be specified in the Order subject to this restriction, that the intervals between successive elections shall not exceed half the period for which elected members of the General Council currently hold office.

(5) The power to make an Order in Council includes power to vary or revoke such an Order by a subsequent Order ; but no recommendation shall be made to Her Majesty to vary or revoke an Order so far as it relates to the appointing bodies except in pursuance of a representation made to the Privy Council by the General Council.

(6) An Order in Council shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) The General Council may by rules provide that section 1(13) above shall have effect with the substitution of such age less than seventy years as is specified in the rules ; but no rules under this subsection shall come into force until approved by order of the Privy Council.

(8) The power to make an order under subsection (7) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and includes power to revoke such an order by a subsequent order.

(9) This section has effect subject to the transitional provisions relating to Ireland contained in Schedule 2 to this Act.

(10) In this section "an Order in Council" means an Order in Council under section 1 above.

3.—(1) As from the appointed day there shall be a branch Branch council for England, for Wales, for Scotland and for Northern councils. Ireland.

(2) The branch council for each area shall consist of—

- (a) the members of the General Council elected for the constituency constituted by its area ;
- (b) the member or members of the General Council chosen by the appointing body or bodies in its area ; and
- (c) the member or members of the General Council nominated for its area.

(3) The General Council may delegate to a branch council such of the functions of the General Council other than those conferred by section 10 below as the General Council think fit.

(4) Each branch council shall appoint a registrar of the council but the person appointed to be registrar of the General Council—

- (a) shall also be registrar of the branch council for England, and
- (b) may also be registrar of all or any of the other branch councils.

(5) On the day appointed for the branch councils for England and Wales to come into existence the branch council for England and Wales shall cease to exist and on the day appointed for the branch council for Northern Ireland to come into existence the branch council for Ireland shall cease to exist.

(6) Schedule 1 to this Act shall have effect in relation to the branch councils.

The 1927 Agreement with the Republic of Ireland

4.—(1) If Her Majesty's Government in the United Kingdom and the Government of the Republic of Ireland agree to terminate the Agreement with respect to the registration and control of medical practitioners set out in Part I of the Schedule to the Medical and Dentists Acts Amendment Act 1927 ("the 1927 Act") Her Majesty in Council may exercise the powers conferred on Her by this section.

Power to amend the Medical Acts in the event of termination of the 1927 Agreement with the Republic of Ireland.

(2) Her Majesty may by Order in Council under this section—

- (a) effect such repeals in the 1927 Act, the Medical Acts 1956 to 1969 and this Act, and
- (b) make such modifications of the Medical Acts 1956 to 1969 and this Act,

as appear to Her to be required in consequence of or in connection with the termination of the said Agreement.

1927 c. 39.

1957 c. 28.

(3) An Order in Council under this section may make such modifications of section 2 of the Dentists Act 1957 (qualifications for registration in dentists' register) as appear to Her Majesty to be required for the purpose of preserving the status of universities and other bodies in the Republic of Ireland as dental authorities for the purposes of that Act during such period as She thinks fit.

(4) An Order in Council under this section may—

(a) appoint different days for different repeals or modifications to take effect under the Order ;

(b) contain such transitional and saving provisions as appear to Her Majesty to be necessary or expedient.

(5) An Order in Council under this section which contains provision repealing Part I of the Schedule to the 1927 Act may provide for the termination, on a specified day, of the offices of the members of the General Council elected for Ireland or chosen by universities or other bodies in Ireland.

(6) An Order in Council under this section which repeals the Irish qualifying provisions shall include provision preserving the right to registration or continued registration in the register of persons who, on the day appointed for the repeal of those provisions to take effect, are entitled to be registered or are registered in the register, as the case may be, by virtue of those provisions.

(7) An Order in Council made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

1956 c. 76.

(8) In this section "the Irish qualifying provisions" means so much of sections 7 and 17 of and Part I of Schedule 3 to the Medical Act 1956 as relates to persons holding qualifications granted by a university or other body in the Republic of Ireland and entitles them to be registered fully or provisionally under section 7 or 17 of that Act by virtue of qualifications so granted.

Professional conduct and fitness to practise

Advice on professional conduct or medical ethics.

5. The powers of the General Council shall include that of providing, in such manner as the Council think fit, advice for members of the medical profession on standards of professional conduct or on medical ethics.

New bodies having functions with respect to professional conduct and fitness to practise.

6.—(1) There shall be established three committees of the General Council to be known as—

the Professional Conduct Committee,

the Health Committee, and

the Preliminary Proceedings Committee,

constituted as provided by the General Council by rules made under this subsection and having, as from the appointed day, the

functions conferred or imposed on them by or under sections 7 to 9 and 12 to 14 of and Schedules 3 and 4 to this Act.

(2) Rules under subsection (1) above—

(a) shall secure that a person who sits as a member of the Preliminary Proceedings Committee in the preliminary proceedings on any case shall not sit as a member of the Professional Conduct Committee or the Health Committee in any subsequent proceedings on that case ; and

(b) shall not come into force until approved by order of the Privy Council.

(3) The power to make orders under subsection (2) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and includes power to vary or revoke such an order by a subsequent order.

(4) Subject to Schedule 3 to this Act, on the appointed day—

(a) the following provisions of the Medical Acts 1956 to 1969 (which provide for and confer functions on the existing Disciplinary Committee and Penal Cases Committee of the General Council), that is to say, sections 32 to 38 of and Schedule 4 to the Medical Act 1956 1956 c. 76. and sections 15 and 16 of the Medical Act 1969, shall 1969 c. 40. cease to have effect ; and

(b) the Disciplinary Committee and the Penal Cases Committee shall cease to exercise their functions under those provisions.

(5) Schedule 3 to this Act shall have effect for the purpose of providing for the disposal under the Medical Acts 1956 to 1969 of disciplinary cases pending immediately before the appointed day, and—

(a) the repeal of the provisions of those Acts specified in subsection (4)(a) above shall not affect their application on and after that day to such cases ; but

(b) any direction given or order made under any of those provisions which has taken effect before that day and is in force immediately before that day shall, if it could be given or made under a provision of this Act, have effect on and after that day as if given or made under that provision of this Act and sections 7, 9, 11 and 12 below shall apply accordingly.

(6) On and after the appointed day any reference in any instrument to the Disciplinary Committee or to any provision repealed by subsection (4)(a) above shall be construed as a reference to the Professional Conduct Committee or to the provision of this Act which corresponds with that repealed provision except in so far as that reference is required for the

disposal of disciplinary cases pending immediately before the appointed day.

(7) After the Disciplinary Committee and the Penal Cases Committee have discharged their functions in relation to all disciplinary cases pending immediately before the appointed day they shall be dissolved.

(8) In this section and in Schedule 3 to this Act "disciplinary case" means any case of a fully registered person who is alleged to have been convicted of a criminal offence or to have been guilty of serious professional misconduct or to have fraudulently procured the making of an entry in the register.

Professional misconduct and criminal offences.

7.—(1) Where a fully registered person—

- (a) is found by the Professional Conduct Committee to have been convicted (whether while so registered or not) in the United Kingdom or any of the Channel Islands or the Isle of Man of a criminal offence; or
- (b) is judged by the Professional Conduct Committee to have been (whether while so registered or not) guilty of serious professional misconduct;

the Committee may, if they think fit, direct—

- (i) that his name shall be erased from the register;
- (ii) that his registration in the register shall be suspended (that is to say, shall not have effect) during such period not exceeding twelve months as may be specified in the direction; or
- (iii) that his registration shall be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such requirements so specified as the Committee think fit to impose for the protection of members of the public or in his interests.

(2) Where a fully registered person whose registration is subject to conditions imposed under subsection (1) above by the Professional Conduct Committee or under section 13(3)(c) below by the Preliminary Proceedings Committee is judged by the Professional Conduct Committee to have failed to comply with any of the requirements imposed on him as conditions of his registration the Committee may, if they think fit, direct—

- (a) that his name shall be erased from the register; or
- (b) that his registration in the register shall be suspended (that is to say, shall not have effect) during such period not exceeding twelve months as may be specified in the direction.

(3) Where the Professional Conduct Committee have given a direction for suspension under subsection (1) or (2) above, the Committee may—

- (a) direct that the current period of suspension shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ;
- (b) direct that the name of the person whose registration is suspended shall be erased from the register ; or
- (c) direct that the registration of the person whose registration is suspended shall, as from the expiry of the current period of suspension, be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such requirements so specified as the Committee think fit to impose for the protection of members of the public or in his interests ;

but the Committee shall not extend any period of suspension under this section for more than twelve months at a time.

(4) Where the Professional Conduct Committee have given a direction for conditional registration, the Committee may—

- (a) direct that the current period of conditional registration shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ; or
- (b) revoke the direction or revoke or vary any of the conditions imposed by the direction ;

but the Committee shall not extend any period of conditional registration under this section for more than twelve months at a time.

(5) Subsection (2) above shall apply to a fully registered person whose registration is subject to conditions imposed under subsection (3)(c) above as it applies to a fully registered person whose registration is subject to conditions imposed under subsection (1) above, and subsection (3) above shall apply accordingly.

(6) Where the Professional Conduct Committee give a direction under this section for erasure, for suspension or for conditional registration or vary the conditions imposed by a direction for conditional registration the Registrar shall forthwith serve on the person to whom the direction applies a notification of the direction or of the variation and of his right to appeal against the decision in accordance with section 11 below.

In this subsection the references to a direction for suspension and a direction for conditional registration include references

to a direction extending a period of suspension or a period of conditional registration.

(7) While a person's registration in the register is suspended by virtue of this section he shall be treated as not being registered therein notwithstanding that his name still appears therein.

(8) This section applies to a provisionally registered person and to a person registered with limited registration whether or not the circumstances are such that he falls within the meaning in this Act of the expression "fully registered person".

Unfitness
to practise
through
illness, etc.

8.—(1) Where the fitness to practise of a fully registered person is judged by the Health Committee to be seriously impaired by reason of his physical or mental condition the Committee may, if they think fit, direct—

- (a) that his registration in the register shall be suspended (that is to say, shall not have effect) during such period not exceeding twelve months as may be specified in the direction ; or
- (b) that his registration shall be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such requirements so specified as the Committee think fit to impose for the protection of members of the public or in his interests.

(2) Where a fully registered person whose registration is subject to conditions imposed under subsection (1) above by the Health Committee or under section 13(3)(c) below by the Preliminary Proceedings Committee is judged by the Health Committee to have failed to comply with any of the requirements imposed on him as conditions of his registration the Committee may, if they think fit, direct that his registration in the register shall be suspended (that is to say, shall not have effect) during such period not exceeding twelve months as may be specified in the direction.

(3) Where the Health Committee have given a direction for suspension under subsection (1) or (2) above, the Committee may—

- (a) direct that the current period of suspension shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ; or
- (b) direct that the registration of the person whose registration is suspended shall, as from the expiry of the current period of suspension, be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such

requirements so specified as the Committee think fit to impose for the protection of members of the public or in his interests ;

but the Committee shall not extend any period of suspension under this section for more than twelve months at a time.

(4) Where the Health Committee have given a direction for conditional registration, the Committee may—

(a) direct that the current period of conditional registration shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ; or

(b) revoke the direction or revoke or vary any of the conditions imposed by the direction ;

but the Committee shall not extend any period of conditional registration under this section for more than twelve months at a time.

(5) Subsection (2) above shall apply to a fully registered person whose registration is subject to conditions imposed under subsection (3)(b) above as it applies to a fully registered person whose registration is subject to conditions imposed under subsection (1) above, and subsection (3) above shall apply accordingly.

(6) Where the Health Committee give a direction under this section for suspension or for conditional registration or vary the conditions imposed by a direction for conditional registration the Registrar shall forthwith serve on the person to whom the direction applies a notification of the direction or of the variation and of his right to appeal against the decision in accordance with section 11 below.

In this subsection the references to a direction for suspension and a direction for conditional registration include references to a direction extending a period of suspension or a period of conditional registration.

(7) While a person's registration in the register is suspended by virtue of this section he shall be treated as not being registered therein notwithstanding that his name still appears therein.

(8) This section applies to a provisionally registered person and to a person registered with limited registration whether or not the circumstances are such that he falls within the meaning in this Act of the expression " fully registered person ".

9.—(1) On giving a direction for erasure or a direction for suspension under section 7(1) or (2) or 8(1) or (2) above in respect of any person the Professional Conduct Committee or the Health Committee, if satisfied that to do so is necessary for the protection of members of the public or would be in the

Power to order immediate suspension after a finding of professional misconduct or unfitness to practise.

best interests of that person, may order that his registration in the register shall be suspended forthwith in accordance with this section.

In this subsection the reference to section 7(2) includes a reference to that provision as applied by section 7(5) and the reference to section 8(2) includes a reference to that provision as applied by section 8(5).

(2) Where an order under subsection (1) above is made in respect of a person, his registration in the register shall, subject to subsection (4) below, be suspended (that is to say, shall not have effect) from the time when the order is made until the time when the original direction takes effect in accordance with paragraph 10 of Schedule 4 to this Act or an appeal against it under section 11 below is (in whatever manner) determined.

In this subsection "the original direction", in relation to an order under subsection (1) above, means the direction for erasure or suspension on the giving of which the order is made.

(3) Where the Professional Conduct Committee or the Health Committee make an order under subsection (1) above the Registrar shall forthwith serve a notification of the order on the person to whom it applies.

(4) If, when an order under subsection (1) above is made, the person to whom it applies is neither present nor represented at the proceedings, subsection (2) above shall have effect as if, for the reference to the time when the order is made, there were substituted a reference to the time of service of a notification of the order as determined for the purposes of paragraph 8 of Schedule 4 to this Act.

(5) While a person's registration in the register is suspended by virtue of subsection (1) above he shall be treated as not being registered therein notwithstanding that his name still appears therein.

(6) The court may terminate any suspension of a person's registration in the register imposed under subsection (1) above, and the decision of the court on any application under this subsection shall be final.

(7) In this section "the court", in the case of a person whose address in the register is in Scotland, means the Court of Session, in the case of a person whose address in the register is in Northern Ireland, means a judge of Her Majesty's High Court of Justice in Northern Ireland, and in the case of any other person means Her Majesty's High Court of Justice in England.

Fraud or
error in
relation to
registration.

10.—(1) If the General Council are satisfied that any entry in the register has been fraudulently procured or incorrectly made they may direct that the entry shall be erased from the register.

(2) Where the General Council give a direction for the erasure of a person's name under this section the Registrar shall forthwith serve on that person a notification of the direction and of his right to appeal against the decision in accordance with section 11 below.

11.—(1) The following decisions are appealable decisions for Appeals. the purposes of this section, that is to say—

- (a) a decision of the Professional Conduct Committee under section 7 above giving a direction for erasure, for suspension or for conditional registration or varying the conditions imposed by a direction for conditional registration ;
- (b) a decision of the Health Committee under section 8 above giving a direction for suspension or for conditional registration or varying the conditions imposed by a direction for conditional registration ; or
- (c) a decision of the General Council under section 10 above giving a direction for erasure.

(2) In subsection (1) above the references to a direction for suspension and a direction for conditional registration include references to a direction extending a period of suspension or a period of conditional registration.

(3) Any person in respect of whom an appealable decision has been taken may, within twenty-eight days of the service of the notification of the decision under section 7(6), 8(6) or 10(2) above, appeal against the decision in accordance with this section.

(4) In the case of an appealable decision—

- (a) of the Professional Conduct Committee under section 7 above ;
- (b) of the Health Committee under section 8 above ; or
- (c) of the General Council under section 10 above directing that an entry be erased because it has been fraudulently procured ;

an appeal under this section shall lie to Her Majesty in Council subject, however, to subsection (5) below and to such rules as Her Majesty in Council may by Order provide for the purpose of regulating appeals under this section.

(5) No appeal under this section shall lie from a decision of the Health Committee except on a question of law.

(6) The Judicial Committee Act 1833 shall apply in relation to the Professional Conduct Committee, the Health Committee and the General Council as it applies in relation to any court from which an appeal lies to Her Majesty in Council.

(7) Without prejudice to the application of that Act, on an appeal under this section to Her Majesty in Council from the Professional Conduct Committee or the Health Committee the Judicial Committee may, in their report, recommend to Her Majesty in Council—

- (a) that the appeal be dismissed ;
- (b) that the appeal be allowed and the direction or variation questioned by the appeal quashed ;
- (c) that such other direction or variation as the Professional Conduct Committee or, as the case may be, the Health Committee could have given or made be substituted for the direction or variation questioned by the appeal ; or
- (d) that the case be remitted to the Professional Conduct Committee or, as the case may be, the Health Committee for that Committee to dispose of the case under section 7 or 8 above in accordance with the directions of the Judicial Committee.

(8) On an appeal under this section to Her Majesty in Council from the General Council the Judicial Committee may, in their report, recommend—

- (a) that the appeal be dismissed ;
- (b) that the appeal be allowed and the direction questioned by the appeal quashed ; or
- (c) that the case be remitted to the General Council for that Council to dispose of the case under section 10 above in accordance with the directions of the Judicial Committee.

(9) In the case of an appealable decision of the General Council under section 10 above other than a decision falling within subsection (4)(c) above an appeal under this section shall lie Privy Council may—

(10) On an appeal under this section to the Privy Council the Privy Council may—

- (a) dismiss the appeal ; or
- (b) allow the appeal and quash the direction questioned by the appeal.

(11) On an appeal under this section from the Professional Conduct Committee or the Health Committee the General Council may appear as respondent ; and for the purpose of enabling directions to be given as to the costs of any such appeal the Council shall be deemed to be a party thereto, whether they appear on the hearing of the appeal or not.

(12) The power to make an Order in Council under subsection (4) above includes power to vary or revoke the Order by a subsequent Order.

(13) An Order in Council under subsection (4) above shall be subject to annulment in pursuance of a resolution of either House of Parliament.

12.—(1) Subject to subsections (2) and (3) below, where the name of a person has been erased from the register under section 7 above the Professional Conduct Committee may, if they think fit, direct his name to be restored to the register. Restoration of names to the register

(2) No application for the restoration of a name to the register under this section shall be made to the Professional Conduct Committee—

- (a) before the expiration of ten months from the date of erasure ; or
- (b) in any period of ten months in which an application for the restoration of his name has already been made by or on behalf of the person whose name has been erased.

(3) This section applies also to a person whose name has been erased from the register under section 33 of the Medical Act 1956 c. 76. 1956 or any enactment repealed by that Act.

(4) In the case of a person who was provisionally registered under any provision of the Medical Act 1956 or this Act before his name was erased, a direction under subsection (1) above shall be a direction that his name be restored by way of provisional registration under that provision or, if he was registered under section 23 of that Act and the direction is made after the repeal of that section by this Act, under section 21 below.

(5) The requirements of the Medical Act 1956 and this Act as to the experience required for registration as a fully registered medical practitioner shall not apply to registration in pursuance of a direction under subsection (1) above.

13.—(1) The Preliminary Proceedings Committee shall have the functions conferred or imposed on them by this section. Preliminary proceedings as to professional misconduct and unfitness to practise.

(2) It shall be the duty of the Committee to decide whether any case referred to them for consideration in which a practitioner is alleged to be liable to have his name erased under section 7 above or his registration suspended or made subject to conditions under section 7 or 8 above ought to be referred for inquiry by the Professional Conduct Committee or the Health Committee.

(3) If the Committee decide that a case ought to be referred for inquiry by the Professional Conduct Committee or the Health Committee—

- (a) they shall give a direction designating the Committee which is to inquire into the case ; and

- (b) they may, subject to subsection (4) below, if satisfied that to do so is necessary for the protection of members of the public, make an order for interim suspension in respect of the person whose case they have decided to refer for inquiry ; or
- (c) they may, subject to subsection (4) below, if satisfied that to do so is necessary for the protection of members of the public or is in his interests, make an order for interim conditional registration in respect of that person, that is to say, an order that his registration shall be conditional on his compliance, during such period not exceeding two months as is specified in the order, with such requirements so specified as the Committee think fit to impose for the protection of members of the public or in his interests.

(4) No order for interim suspension or for interim conditional registration shall be made by the Preliminary Proceedings Committee in respect of any person unless he has been afforded an opportunity of appearing before the Committee and being heard on the question whether such an order should be made in his case ; and for the purposes of this subsection a person may be represented before the Committee by counsel or a solicitor, or (if rules under paragraph 5 of Schedule 4 to this Act so provide and he so elects) by a person of such other description as may be specified in the rules.

(5) If the Committee decide that a case ought to be referred for inquiry by the Professional Conduct Committee or the Health Committee the Registrar shall serve a notification of the decision on the person whose case has been so referred and if the Committee also make an order for interim suspension or for interim conditional registration the Registrar shall include in the notification of the decision a notification of the order and shall serve the notification forthwith.

(6) Where an order for interim suspension is made in respect of a person, his registration in the register shall be suspended (that is to say, shall not have effect) from the time of service of a notification of the order as determined for the purposes of paragraph 8 of Schedule 4 to this Act until the expiration of such period, not exceeding two months, as is specified in the order.

(7) The Professional Conduct Committee or the Health Committee may revoke any order for interim suspension or for interim conditional registration made by the Preliminary Proceedings Committee under this section.

(8) While a person's registration in the register is suspended by virtue of an order for interim suspension under this section

he shall be treated as not being registered in the register notwithstanding that his name still appears therein.

14. Schedule 4 to this Act (which contains provisions supplementary to sections 7 to 13 above) shall have effect. Supplementary provisions.

Education

15.—(1) There shall be established a committee of the General Council to be known as the Education Committee having the general function of promoting high standards of medical education and co-ordinating all stages of medical education. The Education Committee of the General Medical Council.

(2) Subject to subsection (3) below and to the power of the Committee under paragraph 7 of Schedule 1 to this Act to co-opt members, the composition of the Committee shall be such as the General Council think fit.

(3) The members of the Committee chosen by the General Council shall be so chosen as to ensure that the number of appointed members exceeds the number of elected and nominated members or, if there are no nominated members chosen to be members of the Committee, the number of elected members.

(4) For the purpose of discharging their general function under subsection (1) above the Education Committee shall—

- (a) determine the extent of the knowledge and skill which is to be required for the granting of primary United Kingdom qualifications and secure that the instruction given in universities in the United Kingdom to persons studying for such qualifications is sufficient to equip them with knowledge and skill of that extent ;
- (b) determine the standard of proficiency which is to be required from candidates at qualifying examinations and secure the maintenance of that standard ; and
- (c) determine patterns of experience which may be recognised as suitable for giving to those engaging in such employment as is mentioned in section 15(2) of the Medical Act 1956 general clinical training for the 1956 c. 76. purposes of the practice of their profession.

(5) The determinations of the Education Committee under subsection (4) above shall be embodied in recommendations which may be directed to all or any of the universities or other bodies which are concerned with medical education.

(6) In the Medical Acts 1956 to 1969 and this Act—

“ the prescribed knowledge and skill ” means knowledge and skill of the extent for the time being determined

under subsection (4)(a) above and embodied in recommendations under subsection (5) above ;

“ the prescribed standard of proficiency ” means the standard of proficiency for the time being determined under subsection (4)(b) above and embodied in recommendations under subsection (5) above ;

“ a prescribed pattern of experience ” means any pattern of experience for the time being determined under subsection (4)(c) above and embodied in recommendations under subsection (5) above.

1956 c. 76.
1969 c. 40.

(7) Subject to subsection (8) below and to the amendments made by Schedule 6 to this Act, the Education Committee shall assume on the appointed day the functions of the General Council relating to the education of medical practitioners conferred or imposed by the provisions of Part II of the Medical Act 1956 and by section 18 of the Medical Act 1969.

(8) The functions conferred by the following provisions of the Medical Act 1956, that is to say—

(a) section 7B(2) (provision of facilities for testing knowledge of English) ;

(b) section 15(6) (relaxation of requirements as to experience in the case of disabled doctors) ; and

(c) section 16A (alternative requirements as to experience in certain cases) ;

shall remain functions of the General Council ; and the determination of the remuneration payable to visitors appointed under section 9(1) or 15(3A) of that Act and inspectors appointed under section 10(3) of that Act shall be subject to the approval of the General Council.

(9) Nothing in the transfer of functions effected by subsection (7) above shall be taken to affect the validity of any regulations made by the General Council under section 15 or 16 of the Medical Act 1956, and any order approving regulations under section 15 and any regulations made under section 16 may be varied or revoked after that transfer as if the regulations had been made by the Education Committee.

Experience
required
for full
registration.

16.—(1) In section 15 of the Medical Act 1956 (pre-registration experience) the following amendments shall be made, but, in relation to any person who is provisionally registered under section 17 of that Act immediately before this section comes into operation, the said section 15 shall continue to have effect as if this section had not been passed.

(2) For subsection (3) there shall be substituted the following subsection—

“ (3) A person who has been employed as aforesaid may apply to his examining body for a certificate under this section, and if that body are satisfied—

- (a) that during the time he has been so employed he has been engaged in at least two branches of medicine prescribed for the purposes of this paragraph for the minimum period prescribed for each branch ;
- (b) that the combination of posts which he has held while so employed was such as to provide him with the experience required by a prescribed pattern of experience recognised by that body as applicable to persons for whom they are the examining body ; and
- (c) that his service while so employed has been satisfactory,

they shall grant him a certificate in the prescribed form that they are satisfied as aforesaid.”.

(3) After subsection (3), there shall be inserted the following subsections—

“ (3A) The Education Committee may, if they think fit, appoint persons to visit any approved hospital or approved institution.

(3B) It shall be the duty of visitors appointed under subsection (3A) above to report to the Education Committee on the extent to which the general clinical training given by employment in a resident medical capacity in the hospital or institution is such as to provide the experience required by one or more prescribed patterns of experience.

(3C) If the Education Committee is of the opinion that—

- (a) an approved hospital or an approved institution does not provide experience required by any prescribed pattern of experience ; or
- (b) a pattern of experience recognised as applicable to persons by their examining body is not a prescribed pattern of experience ; or
- (c) a combination of posts which is accepted by their examining body as providing persons who have held the posts comprised in the combination with the experience required by a prescribed pattern of experience does not in fact provide that experience,

then the Committee shall notify their opinion to the university or body concerned and that university or body shall have regard to that opinion in discharging their functions under this section ”.

(4) Subsections (4) and (5) shall be omitted.

(5) In subsection (6) for the words "surgery or midwifery required" there shall be substituted the words "a branch of medicine prescribed" and for the words from "medicine" to "in his case" there shall be substituted the words "some other prescribed branch of medicine (whether or not one in the practice of which he has already had experience)".

(6) In subsection (8), in the paragraph defining the expression "approved", after the words "this Act", there shall be inserted the words "as providing experience required by one or more prescribed patterns of experience", in the definition of the expression "prescribed", after the word "means", there shall be inserted the words "(except in the expression "prescribed pattern of experience")" and, in the paragraph construing references to employment in a resident medical capacity, for the words "medicine, surgery or midwifery" there shall be substituted the words "any branch of medicine prescribed for the purposes of this section".

Registration of overseas qualified practitioners

Replace-
ment of
provision
of Part III
of Medical
Act 1956.

17.—(1) Subject to the provisions of Part I of Schedule 5 to this Act, on the day appointed for the coming into operation of sections 22 to 28 below—

(a) section 25 of the Medical Act 1956 (which provides for the temporary registration of medical practitioners), and the reference to that section in section 26 of that Act, shall cease to have effect; and

(b) the register of temporarily registered medical practitioners shall be closed.

(2) Subject to the provisions of Part II of Schedule 5 to this Act, on the day appointed for the coming into operation of sections 18 to 21 below, sections 18 to 24 and 26 of the Medical Act 1956 (which provide for the registration of Commonwealth and foreign practitioners) and the Medical Practitioners and Pharmacists Act 1947 (which, so far as still in force, makes similar provision) shall cease to have effect.

(3) If the day mentioned in subsection (1) above is earlier than the day mentioned in subsection (2) above, the Medical Acts 1956 to 1969 and this Act shall have effect, during the period commencing with the first day and ending immediately before the second, subject to the provisions of Part III of Schedule 5 to this Act.

Full
registration by
virtue of
recognised
overseas
qualifications.

18.—(1) Where a person satisfies the Registrar—

(a) that he holds one or more recognised overseas qualifications;

(b) that he has the necessary knowledge of English; and

(c) that he is of good character ;

and satisfies the requirements of section 20 below as to experience, that person shall, if the General Council think fit so to direct, be registered under this section as a fully registered medical practitioner.

(2) A person registered under this section shall, on being so registered, be entitled to have the recognised overseas qualification or qualifications held by him registered under this section.

(3) In this Act a " recognised overseas qualification " means any qualification granted outside the United Kingdom and for the time being recognised by the General Council for the purposes of this section as furnishing a sufficient guarantee of the possession of knowledge and skill corresponding with the prescribed knowledge and skill and as having been granted by virtue of the passing of an examination at which the standard of proficiency required corresponds with the prescribed standard of proficiency.

(4) An applicant for registration under this section has the necessary knowledge of English if he has the knowledge which, in the interests of himself and his patients, is necessary for the practice of medicine in the United Kingdom.

(5) The General Council may provide facilities for testing the knowledge of English of applicants for registration under this section.

(6) On registering a person under this section the Registrar shall issue to him an appropriate certificate of registration stating, in the form prescribed by regulations under section 4 of the Medical Act 1969 for entries in the register, the person's 1969 c. 40. name and such other particulars as may be so prescribed.

19.—(1) A person registered under section 18 above who obtains any recognised overseas qualification shall be entitled to have the qualification registered. Registration of further qualifications.

(2) A person holding any other qualification granted outside the United Kingdom which the General Council determine ought to be registrable by virtue of this subsection as a further qualification shall, subject to subsection (4) below, if he is registered under section 18 above or 21 below or on becoming so registered, be entitled to have the qualification registered.

(3) A person holding any additional qualification (within the meaning of the Medical Act 1956) which the General Council determine ought to be registrable by virtue of this subsection shall, subject to subsection (4) below, if he is registered under section 18 above or 21 below or on becoming so registered, be entitled to have the qualification registered. 1956 c. 76.

(4) If, in the case of any such qualification as is mentioned in subsection (2) or (3) above, the General Council determine that it ought not to be registrable by virtue of that subsection if granted before or after a particular date, a person holding that qualification shall not be entitled to have it registered if it was granted to him before or, as the case may be, after that date.

Experience
required for
full registration
by virtue of
recognised
overseas
qualifications.
1956 c. 56.

20.—(1) The requirements as to experience mentioned in section 18(1) above are the following.

(2) The General Council must be satisfied that the person claiming registration—

(a) has been employed as mentioned in subsection (2) of section 15 of the Medical Act 1956 and while so employed has held a combination of posts which was such as to provide him with the experience required by one of the prescribed patterns of experience and satisfies the conditions specified in paragraphs (a) and (c) of subsection (3) of that section; or

(b) has acquired experience in the practice of medicine, whether in the course of employment in the United Kingdom or in the course of employment outside the United Kingdom, which is not less extensive than that required for a certificate under the said section 15.

(3) Subsection (6) of the said section 15 (alternative experience allowed in cases of physical disability) shall apply to a person prevented from embarking on, or completing, a period of experience required for the purposes of this section as it applies to a person prevented from embarking on, or completing, a period of experience required for the purposes of that section.

Provisional
registration of
practitioners
having
recognised
overseas
qualifications.

21.—(1) The following provisions shall have effect for enabling persons desirous of satisfying the General Council of the matters specified in section 20(2)(a) above to be employed as mentioned in subsection (2) of section 15 of the Medical Act 1956.

(2) A person who satisfies the Registrar of the matters specified in paragraphs (a), (b) and (c) of section 18(1) above may apply to the General Council to be registered provisionally under this section and, if the Council think fit so to direct, that person shall be so registered.

(3) Subsections (4) and (5) (as well as subsection (3)) of section 18 above shall apply for the purposes of an application under this section as they apply for the purposes of an application under that section.

(4) A person provisionally registered under this section shall, on being so registered, be entitled to have the recognised overseas qualification or qualifications held by him registered under this section.

(5) A person provisionally registered under this section shall be deemed to be registered under section 18 above as a fully registered medical practitioner so far as is necessary to enable him to be engaged in employment in a resident medical capacity (within the meaning of the said section 15) in one or more approved hospitals or approved institutions (within the meaning of that section), but not further.

(6) On registering a person under this section the Registrar shall issue to him an appropriate certificate of registration stating, in the form prescribed by regulations under section 4 of the Medical Act 1969 for entries in the register, the person's name and such other particulars as may be so prescribed. 1969 c. 40.

22.—(1) Subject to subsection (10) below and to section 23 below, where a person satisfies the Registrar—

Limited registration of practitioners having overseas qualifications.

- (a) that he has been selected for employment in the United Kingdom or the Isle of Man as a medical practitioner in one or more hospitals or other institutions approved by the General Council for the purposes of this section ;
- (b) that he holds, has held, or has passed the examination necessary for obtaining some acceptable overseas qualification or qualifications ;
- (c) that he has the necessary knowledge of English ;
- (d) that he is of good character ; and
- (e) that he has the knowledge and skill, and has acquired the experience, which is necessary for practice as a medical practitioner registered under this section and is appropriate in his case ;

he shall, if the General Council think fit so to direct, be registered under this section as a medical practitioner with limited registration.

(2) In this Act " limited registration " means registration under this section limited in accordance with subsection (11) below in respect of the period for which and the employment for the purposes of which it has effect.

(3) An applicant for limited registration shall specify in his application the particular employment or the descriptions of employment for the purposes of which he desires to be registered and shall give such other particulars as the General Council may require.

(4) No person shall be registered under this section for a period, or for periods which amount in the aggregate to a period, exceeding five years; and in this Act the "permitted period", in relation to an applicant for registration under this section, means—

(a) if he has not previously been registered under this section, five years;

(b) if he has previously been so registered, the amount by which five years exceeds the period or aggregate of periods for which he has been so registered.

(5) A person registered under this section shall, on being so registered, be entitled to have the acceptable overseas qualification or qualifications held by him registered under this section.

(6) In this Act an "acceptable overseas qualification" means any qualification granted outside the United Kingdom and for the time being accepted by the General Council for the purposes of this section as furnishing a sufficient guarantee of the possession of the knowledge and skill requisite for the practice of medicine under the supervision of a person who is registered as a fully registered medical practitioner.

(7) An applicant for registration under this section has the necessary knowledge of English if he has the knowledge which, in the interests of himself and his patients, is necessary for the practice of medicine in the United Kingdom; and the General Council may provide facilities for testing the knowledge of English of such applicants.

(8) What knowledge and skill, and what experience, is necessary for practice as a medical practitioner registered under this section shall be determined by the General Council in relation to each branch of medicine and to practice therein in the descriptions of employment for the purposes of which persons apply for registration under this section; and in subsection (1)(e) above the knowledge and skill, and the experience, which is appropriate in the case of an applicant means, subject to subsections (9) and (10) below, the knowledge and skill, or the experience, determined under this subsection which appears to the Registrar to be appropriate to the particular employment or the descriptions of employment for which the applicant desires to be registered.

(9) The General Council may, in the case of any particular application for limited registration, give to the Registrar a direction determining what knowledge and skill, or what experience, determined by the Council under subsection (8) above for the purposes of subsection (1)(e) above is appropriate in the case of the applicant having regard to the particular employment or descriptions of employment for the purposes of which the

applicant desires to be registered or the Council consider they may grant registration under this section.

(10) The General Council may, in the case of any applicant or applicants of any description, give to the Registrar a direction exempting the applicant, or applicants of that description, from compliance with the requirements of subsection (1)(e) above as to knowledge and skill, or as to experience, or both.

(11) The limits of a person's registration under this section shall be defined in the direction by virtue of which he is registered in accordance with the following provisions, that is to say—

- (a) the direction shall specify a period, not exceeding his permitted period, as the period for which his registration is to have effect ; and
- (b) the direction shall specify the particular employment or the descriptions of employment for the purposes of which he is registered under this section ;

and, subject to subsection (12) below and to section 23(1) and (2) below, that person's registration shall have effect for the period and for the purposes of the particular employment or the descriptions of employment specified in the direction.

(12) Where a direction specifies a particular employment as the employment for the purposes of which a person is registered under this section and that employment terminates before the end of the period specified in the direction by virtue of subsection (11)(a) above, the registration of the person under this section shall cease to have effect when that employment terminates.

(13) A person registered under this section shall be treated as registered under section 18 above as a fully registered medical practitioner in relation to the following matters, namely—

- (a) any employment in which he is engaged during the currency of his registration, being the particular employment or employment of a description for the purposes of which he is registered ; and
- (b) things done or omitted in the course of that employment ; and
- (c) any other thing incidental to his work in that employment which, by virtue of any enactment, may not lawfully or validly be done except by a fully registered medical practitioner ;

but in relation to other matters he shall be treated as not so registered.

(14) A person registered under this section shall not, while engaged in the particular employment or in employment of a description for the purposes of which he is registered, work otherwise than under the supervision of a person who is registered as a fully registered medical practitioner.

(15) This section has effect subject to the provisions of Part I of Schedule 5 to this Act with respect to the registration under this section of temporarily registered persons who are practitioners to whom that Part applies.

Limited
registration:
erasure.

23.—(1) The General Council may, on an application being made to them containing such particulars as they may require by a person who is registered with limited registration, direct that his name shall be erased from the register on his own application on such day as they may specify in the direction; but the fact that a person's name has been erased under this subsection shall be disregarded by the Council in deciding whether or not to grant limited registration for a further period to that person.

(2) If it appears to the General Council, having regard to his performance in a relevant employment, that a person registered under section 22 above does not in fact possess the appropriate knowledge and skill, the Council may, subject to subsection (4) below, if they think fit, direct that his name shall be erased from the register.

(3) In subsection (2) above, in relation to a person registered under section 22 above—

- (a) "a relevant employment" means a particular employment or an employment of a description for the purposes of which he is or has been so registered; and
- (b) "the appropriate knowledge and skill" means the knowledge and skill which was required in his case in pursuance of subsection (1)(e) of that section in connection with the application for registration under that section by virtue of which he is so registered.

(4) No person's name shall be erased from the register under subsection (2) above unless—

- (a) the Registrar has served on him a notification of the grounds on which the Council are considering exercising their powers under that subsection; and
- (b) the Council have afforded him an opportunity of making representations to them in the matter;

and paragraph 8 of Schedule 4 to this Act shall apply to a notification required to be served by this subsection as it applies to the notifications required to be served by the provisions mentioned in that paragraph.

(5) Until the coming into operation of paragraph 8 of Schedule 4 to this Act, subsection (4) above shall have effect as if for any reference to that paragraph there were substituted a reference to section 36(2) of the Medical Act 1956.

1956 c. 76.

24.—(1) Registration under section 22 above of persons granted limited registration shall be effected in a register, to be known as the register of medical practitioners with limited registration, which shall be prepared and kept by the Registrar and shall contain, in addition to names and qualifications, the addresses and dates of registration of the persons registered therein and such other particulars (if any) of those persons as may be prescribed.

Register of medical practitioners with limited registration.

(2) Subsections (4), (5) and (6) of section 3 and subsections (1), (2) and (6) of section 4 of the Medical Act 1969 (which relate to the keeping of the register of medical practitioners) shall apply in relation to the register of medical practitioners with limited registration and to persons and matters registered therein as they apply in relation to the register of medical practitioners and persons and matters registered in that register; but any regulations under the said section 4 made by virtue of subsection (1) or (2) thereof may make different provision in relation to the register of medical practitioners and the register of medical practitioners with limited registration.

1969 c. 40.

(3) On registering a person under section 22 above the Registrar shall issue to him an appropriate certificate of registration stating, in the form prescribed for entries in the register of medical practitioners with limited registration, the person's name and such other particulars as may be prescribed.

(4) In this section "prescribed" means prescribed by regulations under section 4 of the Medical Act 1969.

25.—(1) A person who is or has been registered with limited registration may, on satisfying the Registrar that he is of good character, apply to the General Council to be registered fully by virtue of this section; and if the Council think fit so to direct, having regard to the knowledge and skill shown and the experience acquired by the applicant, he shall be registered under section 18 above as a fully registered medical practitioner.

Full registration for persons with limited registration.

(2) A person registered under section 18 above by virtue of this section shall, on being so registered, be entitled to have registered under this section the following qualifications held by him, that is to say—

- (a) the acceptable overseas qualification or qualifications by virtue of which he was granted limited registration;
- (b) any primary United Kingdom qualifications; and
- (c) any qualifications for the time being registrable as additional qualifications under the Medical Act 1956.

Full
registration of
visiting
overseas
doctors.

26.—(1) A person who is or intends to be in the United Kingdom temporarily for the purpose of providing medical services of a specialist nature may apply to the General Council to be registered temporarily as a fully registered medical practitioner and if the Council are satisfied—

- (a) that he holds one or more recognised overseas qualifications or acceptable overseas qualifications ;
- (b) that he possesses special knowledge of and skill in a particular branch or branches of medicine ; and
- (c) that the medical services he is to provide lie within that branch or one or more of those branches of medicine,

they may, if they think fit, direct that he shall be registered under this section as a fully registered medical practitioner for such period as they may specify in the direction.

(2) No person shall be fully registered under this section for a period exceeding twelve months.

(3) At the expiration of the period specified in a direction under subsection (1) above the registration of the person to whom the direction applies shall cease to have effect.

(4) On registering a person under this section the Registrar shall issue to him an appropriate certificate of registration stating, in the form prescribed by regulations under section 4 of the Medical Act 1969 for entries in the register, the person's name and such other particulars as may be so prescribed.

1969 c. 40.

The Review
Board for
Overseas
Qualified
Practitioners.

27.—(1) There shall be established a body to be known as the Review Board for Overseas Qualified Practitioners (in this Act referred to as the "Review Board") constituted in accordance with the following provisions of this section and having the functions conferred on them by section 28 below.

(2) The Review Board shall consist of—

- (a) a chairman and a deputy chairman, not being members of the General Council, appointed by the President of the General Council having regard to the recommendation of such body or bodies concerned with post-graduate medical education in England and Wales, in Scotland and in Northern Ireland, as the Council may by rules prescribe ;
- (b) until the succession day—

(i) one member nominated by Her Majesty on the advice of the Privy Council, being a medical practitioner registered under Part III of the Medical Act 1956 ; and

1956 c. 76.

(ii) such number of other members, being members of the General Council, as the Council may by rules prescribe, including at least one member elected under section 4 of the Medical Act 1956 and one member appointed under section 3 of that Act; and 1956 c. 76.

(c) on and after the succession day, such number of other members, being members of the General Council and including at least—

(i) one elected member,

(ii) one appointed member, and

(iii) one member who is or has been registered under Part III of the Medical Act 1956 or under section 18 or 22 above,

as the Council may by rules prescribe.

(3) There shall be paid to the members of the Review Board such fees and such travelling, subsistence or other allowances as the General Council may allow.

(4) The General Council shall provide the Review Board with office accommodation and secretarial assistance for the discharge of their functions.

(5) The General Council may by rules make provision with respect to the quorum and procedure of the Review Board.

(6) No rules under this section shall come into force until approved by order of the Privy Council.

(7) The power to make orders under subsection (6) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and shall include power to vary or revoke any such order by a subsequent order.

28.—(1) Any person in whose case a decision falling within subsection (2) below is made by the General Council may require the Registrar to state in writing the reasons for the decision and, subject to subsection (3) below, may apply to the Review Board for that decision to be reviewed by the Board. Functions of the Review Board.

(2) The following are the decisions referred to in subsection (1) above, namely—

(a) a refusal to direct by virtue of section 18 above that a person be registered under that section as a fully registered medical practitioner;

(b) a refusal to direct that a person be registered provisionally under section 21 above;

- (c) in a case where at the date of the refusal a person had been registered with limited registration for a period, or for periods which amount in the aggregate to a period, of not less than three years and six months, a refusal to direct by virtue of section 25 above that he be registered under section 18 above as a fully registered medical practitioner ;
 - (d) in the case of a person who is or has been registered with limited registration for a period, a refusal to direct under section 22(1) above that he be granted limited registration for a further period ;
 - (e) a refusal to direct that a person be registered with limited registration under section 22 above by virtue of paragraph 4 of Schedule 5 to this Act ; and
 - (f) a direction under section 23(2) above that a person's name be erased from the register of medical practitioners with limited registration.
- (3) A person in whose case a decision falling within subsection (2) above is made shall not be entitled to apply to the Review Board for the decision to be reviewed where—
- (a) the decision is such a refusal as is referred to in paragraph (a) of that subsection and the reason or one of the reasons for the refusal given by the Registrar is that the person does not satisfy the requirements of section 20 above as to experience ; or
 - (b) the decision is such a refusal as is referred to in paragraph (a) or (b) of that subsection and the reason or one of the reasons for the refusal given by the Registrar is that no qualification which the person claims to hold is a recognised overseas qualification ; or
 - (c) the decision is such a refusal as is referred to in paragraph (a), (b), (c) or (d) of that subsection and the reason or one of the reasons for the refusal given by the Registrar is that the person has failed to satisfy him that he has the necessary knowledge of English.
- (4) On completing a review under this section of any decision, the Review Board shall determine whether in their opinion the decision ought to stand and shall notify their opinion to the President of the General Council or to such other member of the Council as the Council may appoint to act for the purposes of this subsection ; and the President or member so appointed may, if having regard to the Board's opinion he thinks fit, direct that the decision be reversed.

29.—(1) As from the appointed day until their repeal by this Act, sections 18 and 23 of the Medical Act 1956 shall have effect subject to the modification that an applicant for registration under either of those sections shall not be entitled to be so registered unless he satisfies the Registrar that he has the necessary knowledge of English, that is, the knowledge which, in the interests of himself and his patients, is necessary for the practice of medicine in the United Kingdom; and for the purposes of this subsection the General Council may provide facilities for testing the knowledge of English of such applicants.

Knowledge of English to be a condition for registration under s. 18 or 23 of Medical Act 1956.
1956 c. 76.

(2) Section 24 of the Medical Act 1956 (which provides for appeals against refusal of registration under section 18 or 23 of that Act in certain cases) shall not apply in any case where an application for registration under section 18 or 23 is refused and the reason or one of the reasons for the refusal is that the applicant has failed to satisfy the Registrar that he has the necessary knowledge of English.

Supplementary

30. In this Act—

Definitions.

- “acceptable overseas qualification” has the meaning given by section 22(6) above;
- “appointed member” has the meaning given by section 1(16) above;
- “elected member” has the meaning given by section 1(16) above;
- “fully registered person” and “fully registered” have the same meanings as they have in the Medical Act 1956;
- “the General Council” means the General Medical Council;
- “limited registration” has the meaning given by section 22(2) above;
- “nominated member” has the meaning given by section 1(16) above;
- “the prescribed knowledge and skill”, “the prescribed standard of proficiency” and “a prescribed pattern of experience” have the meanings given by section 15(6) above;
- “provisionally registered” means provisionally registered under section 17 or 23 of the Medical Act 1956 or under section 21 above;
- “recognised overseas qualification” has the meaning given by section 18(3) above;
- “the register” means the register of medical practitioners, except that, in relation to a person registered with limited registration, it means the register of medical practitioners with limited registration;

“the Registrar” means, subject to paragraph 6(3) of Schedule 1 to this Act, the registrar of the General Council ; and

“the succession day” has the meaning given by section 1(16) above.

Minor and consequential amendments, repeals and saving.

31.—(1) The enactments specified in Schedule 6 to this Act shall be amended in accordance with that Schedule.

(2) The enactments specified in Schedule 7 to this Act (which include enactments which are obsolete or spent) are hereby repealed to the extent specified in the third column of that Schedule subject, however, to the savings contained in section 6(5) above and subsection (3) below.

(3) Nothing in the repeals effected by subsection (2) above shall affect the validity of the standing orders of the General Council in force immediately before the succession day and those orders shall have effect as if made under paragraph 8 of Schedule 1 to this Act.

S.I. 1977/827.

(4) Paragraph (3) of Article 3 of the Medical Qualifications (EEC Recognition) Order 1977 is hereby revoked.

Short title, citation, commencement and extent.

32.—(1) This Act may be cited as the Medical Act 1978, and the Medical Acts 1956 to 1969 and this Act may be cited together as the Medical Acts 1956 to 1978.

(2) This Act (except section 4 above, section 17 above and this section) shall come into operation on such day as Her Majesty may by Order in Council appoint, and different days may be appointed under this subsection for different provisions of this Act.

(3) This Act extends to Northern Ireland.

SCHEDULES

SCHEDULE 1

Sections 1 and 3.

SUPPLEMENTARY PROVISIONS RELATING TO THE GENERAL COUNCIL AND BRANCH COUNCILS

Corporate status

1. The General Medical Council shall continue to be a body corporate.

2. It shall be within the capacity of the General Council as a corporation to do such things and enter into such transactions as are in their opinion incidental or conducive to the performance of their functions under the Medical Acts 1956 to 1969 or this Act, including the borrowing of money.

Proceedings of the General Council

3. The validity of any proceedings of the General Council shall not be affected by any vacancy among the members of the Council or by any defect in the election, appointment or nomination of a member thereof.

4.—(1) The quorum of the General Council shall be prescribed by the General Council by rules under this sub-paragraph.

(2) No rules under sub-paragraph (1) above shall come into force until approved by order of the Privy Council.

(3) The power to make orders under sub-paragraph (2) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and shall include power to vary or revoke any such order by a subsequent order.

5. All acts of the General Council shall be decided by the votes of a majority of the members present at any meeting, and if the votes are equal the person who presides at the meeting shall, in addition to his vote as a member of the Council, have a casting vote.

Officers of the General Council

6.—(1) The General Council shall elect from among their number a president of the General Council and may so elect a chairman and a treasurer or treasurers of the General Council.

(2) The president and any chairman or treasurer elected in pursuance of sub-paragraph (1) above shall be elected for a term not extending beyond the expiration of the term for which he has been elected, chosen or nominated to be a member of the General Council.

(3) The General Council shall appoint a person to be registrar of the Council and may appoint such deputy and assistant registrars of the Council as the Council think fit, and where a deputy or assistant registrar is authorised by the registrar of the Council to act for him in any matter any reference relating to that matter in the Medical Acts 1956 to 1969 or this Act to "the Registrar" shall include a reference to that deputy or assistant.

SCH. 1

Committees of the General Council

7.—(1) The General Council may constitute out of their membership one or more committees.

(2) A committee of the General Council may, if authorised to do so by the General Council, co-opt such persons (whether or not members of the Council) as the committee think fit subject to the approval of the General Council to the number of persons who may be co-opted and, in the case of persons who are not members of the General Council, to the approval of the General Council to their being co-opted.

This sub-paragraph does not apply in relation to the Professional Conduct Committee, the Health Committee or the Preliminary Proceedings Committee.

(3) The General Council may delegate to any committee of the Council such of the Council's functions as they think fit.

(4) The quorum of a committee of the General Council shall be such as the General Council determine from time to time.

Standing Orders

8.—(1) The General Council may by standing order make provision with respect to the meetings and proceedings of and the discharge of their functions by the Council and any committees of the Council, with respect to the composition of committees of the Council and with respect to the functions of the officers of the Council.

(2) Any standing order made by the Council under this paragraph may be varied or revoked by a subsequent standing order.

(3) This paragraph does not apply in relation to the Professional Conduct Committee, the Health Committee or the Preliminary Proceedings Committee nor shall standing orders be made under it in relation to the discharge of the Council's functions under section 10 of this Act or in relation to any committee to whom those functions may be delegated.

Remuneration and allowances for members of the General Council and branch councils

9. There shall be paid to the members of the General Council and of the branch councils such fees and such travelling, subsistence or other allowances as the General Council may allow.

Sections 1 and 2.

SCHEDULE 2

TRANSITIONAL PROVISIONS FOR IRELAND

1. The power to make an Order in Council or an electoral scheme for the purposes of an Order in Council under section 1 of this Act shall include power to make provision, in accordance with this Schedule, for the General Council to be so constituted as to include a member elected for the whole of Ireland (in addition to a member or members elected for Northern Ireland) and members appointed by universities or other bodies situated in any part of Ireland.

2. An electoral scheme may constitute the whole of Ireland one constituency for the purpose of elections to the General Council, returning one member to that Council.

SCH. 2

3. The persons qualified to elect the member for Ireland shall be those who, when the election is held—

- (a) are resident in any part of Ireland ; and
- (b) are fully registered persons.

4. A person shall not be qualified to be elected the member for Ireland unless he is a fully registered person.

5. The following bodies in the Republic of Ireland (in addition to any in Northern Ireland) may be designated as bodies each having power to choose one appointed member of the General Council, that is to say—

- the University of Dublin ;
- the National University of Ireland ;
- the Royal College of Physicians of Ireland ; and
- the Royal College of Surgeons in Ireland.

6. The elected member for Ireland who is in office immediately before the succession day and the members chosen by the bodies specified in paragraph 5 above who are in office immediately before that day may be treated by an Order under section 1 of this Act as having been respectively elected and chosen under that section as members of the General Council.

7. The member elected or treated as having been elected for Ireland and the members chosen or treated as having been chosen by the bodies specified in paragraph 5 above shall not be taken into account in determining the numbers of elected members, appointed members and nominated members of the General Council required for compliance with section 1(3) of this Act.

SCHEDULE 3

Section 6

TRANSITIONAL PROVISIONS FOR PENDING DISCIPLINARY CASES

1. A pending disciplinary case which is under consideration by the President when the appointed day comes shall, unless he decides that it need not be proceeded with further, be referred by him to the Preliminary Proceedings Committee for consideration by them.

2. A pending disciplinary case which the President has, before the appointed day, directed to be referred to the Penal Cases Committee shall, unless paragraph 3 below applies, be treated as having been referred instead to the Preliminary Proceedings Committee.

3. Where the Penal Cases Committee have begun but not completed their investigation of a pending disciplinary case before the appointed day they shall proceed to complete their investigation after the appointed day, and, if on completing their investigation they

SCH. 3 decide that an inquiry into the case should be held, they shall refer the case to the Professional Conduct Committee for inquiry by them.

4. A pending disciplinary case which the Penal Cases Committee have, before the appointed day, referred to the Disciplinary Committee shall, unless paragraph 5 below applies, be treated as having been referred instead to the Professional Conduct Committee for inquiry by them.

5.—(1) Where the Disciplinary Committee have begun but not completed their inquiry into a pending disciplinary case before the appointed day they shall proceed to complete their inquiry after the appointed day and, unless they state that they have concluded the case, shall refer the case to the Professional Conduct Committee to be dealt with by them.

1956 c. 76. (2) In dealing with a pending disciplinary case referred to them under sub-paragraph (1) above the Professional Conduct Committee shall have such powers only as would have been available to the Disciplinary Committee under section 33 or 35 of the Medical Act 1956.

6. An appeal shall lie from the Disciplinary Committee in a pending disciplinary case to Her Majesty in Council under section 36 of the Medical Act 1956 notwithstanding that no petition of appeal has been lodged by the appointed day if the petition is lodged within the time allowed under subsection (3) of that section or within that time as extended under subsection (6) of that section and in accordance with rules under the said subsection (3); and, for this purpose, the President may exercise his powers under the said subsection (6) after the appointed day.

7. In this Schedule—

“the appointed day” means the day appointed for the purposes of section 6 of this Act;

“disciplinary case” has the meaning given by that section;

“pending disciplinary case” means a disciplinary case for which proceedings were instituted under the Medical Act 1956 before the appointed day but in which no direction under section 33 or order under section 35 of that Act has taken effect before the appointed day;

“the President” means the President of the General Council.

Section 14.

SCHEDULE 4

PROFESSIONAL CONDUCT AND FITNESS TO PRACTISE: SUPPLEMENTARY PROVISIONS

Procedure of and evidence before the Professional Conduct Committee and the Health Committee

1.—(1) Subject to the provisions of this paragraph, the General Council shall make rules for the Professional Conduct Committee

and for the Health Committee with respect to the times and places of the meetings of the Committee and the mode of summoning the members, the reference of cases to the Committee (whether by the Preliminary Proceedings Committee or otherwise) and the procedure to be followed and rules of evidence to be observed in proceedings before the Committee.

(2) Rules made under this paragraph for the Professional Conduct Committee shall include provision—

- (a) securing that notice that the proceedings are to be brought shall be given, at such time and in such manner as may be specified in the rules, to the person to whose registration the proceedings relate ;
- (b) securing that any party to the proceedings shall, if he so requires, be entitled to be heard by the Committee ;
- (c) enabling any party to the proceedings to be represented by counsel or a solicitor, or (if the rules so provide and the party so elects) by a person of such other description as may be specified in the rules ;
- (d) requiring proceedings before the Committee to be held in public except in so far as may be provided by the rules ;
- (e) requiring that where, in a case in which it is alleged that a person has been guilty of serious professional misconduct, the Committee judge that the allegation has not been proved they shall record a finding that the person is not guilty of such misconduct in respect of the matters to which the allegation relates.

(3) Rules made under this paragraph for the Health Committee shall include provision—

- (a) securing that notice that the proceedings are to be brought shall be given, at such time and in such manner as may be specified in the rules, to the person to whose registration the proceedings relate ;
- (b) securing that any party to the proceedings shall, if he so requires, be entitled to be heard by the Committee ;
- (c) enabling any party to the proceedings to be represented by counsel or a solicitor, or (if the rules so provide and the party so elects) by a person of such other description as may be specified in the rules.

(4) Before making rules under this paragraph the General Council shall consult with such bodies of persons representing medical practitioners, or medical practitioners of any description, as appear to the Council requisite to be consulted.

(5) Rules under this paragraph shall not come into force until approved by order of the Privy Council, and the Privy Council may approve such rules either as submitted to them or subject to such modifications as appear to them to be requisite ; but where the Privy Council propose to approve any rules subject to modifications they shall notify to the General Council the modifications they propose to make and consider any observations of the General Council thereon.

SCH. 4

(6) The power to make orders under sub-paragraph (5) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and includes power to vary or revoke an order by a subsequent order.

2.—(1) For the purpose of proceedings before the Professional Conduct Committee or the Health Committee in England or Wales or in Northern Ireland the Committee may administer oaths, and any party to the proceedings may issue a writ of sub poena ad testificandum or duces tecum, but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

1925 c. 49.

(2) Section 49 of the Supreme Court of Judicature (Consolidation) Act 1925 (which provides a special procedure for the issue of such writs so as to be in force throughout the United Kingdom) shall apply in relation to proceedings before the Professional Conduct Committee or the Health Committee in England or Wales or in Northern Ireland as it applies in relation to causes or matters in the High Court.

(3) For the purpose of proceedings before the Professional Conduct Committee or the Health Committee in Scotland, the Committee may administer oaths and the Court of Session shall on the application of any party to the proceedings have the like power as in any action in that court—

- (a) to grant warrant for the citation of witnesses and havers to give evidence or to produce documents before the Committee, and for the issue of letters of second diligence against any witness or haver failing to appear after due citation ;
- (b) to grant warrant for the recovery of documents ; and
- (c) to grant commissions to persons to take the evidence of witnesses or to examine havers and receive their exhibits and productions.

3. Where—

- (a) several sittings of the Professional Conduct Committee or the Health Committee or the General Council are required to enable the Committee or the Council to dispose of a case ; or
- (b) on an appeal to Her Majesty in Council under section 11 of this Act, the case is remitted to the Committee or to the General Council for the Committee or the Council to dispose of the case in accordance with directions given by the Judicial Committee ;

the validity of the proceedings on the case before the Professional Conduct Committee, the Health Committee or the General Council, as the case may be, shall not be called into question by reason only that members of the Committee or Council who were present at a former meeting were not present at a later meeting of the Committee or Council or that members present at a later meeting were not present at a former meeting of the Committee or Council, as the case may be.

Reference and transfer of cases to the Health Committee

SCH. 4

4.—(1) Where, in the course of inquiring into the case of a practitioner, it appears to the Professional Conduct Committee that his fitness to practise may be seriously impaired by reason of his physical or mental condition, the Committee may refer that question to the Health Committee for determination.

(2) If, on a reference under this paragraph, the Health Committee determine that the fitness of the practitioner to practise is not seriously impaired by reason of his condition the Health Committee shall certify their opinion to the Professional Conduct Committee.

(3) If, on a reference under this paragraph, the Health Committee determine that the fitness of the practitioner to practise is seriously impaired by reason of his condition the Health Committee shall certify their opinion to the Professional Conduct Committee and shall proceed to dispose of the case, and the Professional Conduct Committee shall cease to exercise their functions in relation to the case.

Preliminary proceedings

5.—(1) The General Council shall make rules for the Preliminary Proceedings Committee with respect to the times and places of the meetings of the Committee and the mode of summoning the members, and the manner in which the Committee are to discharge their functions.

(2) Rules made under this paragraph for the Preliminary Proceedings Committee shall include provision requiring that before any case is considered by the Committee it shall have been considered by a member of the General Council appointed for the purpose by the Council and referred by that person to the Committee.

(3) Sub-paragraphs (4) to (6) of paragraph 1 above shall apply in relation to rules made under this paragraph as they apply in relation to rules under that paragraph.

Proceedings for erasure of entries fraudulently procured or incorrectly made

6.—(1) The General Council shall make rules with respect to the discharge by the Council of their functions under section 10 of this Act and, if the Council delegate their functions under that section to a committee, with respect to the times and places of the meetings of the committee and the mode of summoning members and the discharge of those functions by the committee.

(2) Sub-paragraphs (4) to (6) of paragraph 1 above shall apply in relation to rules made under this paragraph as they apply in relation to rules under that paragraph.

Legal assessors

7.—(1) For the purpose of advising the Professional Conduct Committee, the Health Committee and the Preliminary Proceedings Committee on questions of law arising in proceedings before them there shall in all such proceedings be an assessor to the Committee who shall be appointed by the General Council and shall be a barrister, advocate or solicitor of not less than 10 years' standing.

SCH. 4

(2) An assessor may be appointed under this paragraph either generally or for any particular proceedings or class of proceedings.

(3) The Lord Chancellor or, in relation to proceedings in Scotland, the Lord Advocate may make rules as to the functions of assessors appointed under this paragraph.

(4) Rules made under this paragraph in relation to proceedings before the Professional Conduct Committee and the Health Committee may in particular contain such provisions as appear to the Lord Chancellor or the Lord Advocate expedient for securing—

(a) that where an assessor advises the Committee on any question of law as to evidence, procedure or any other matters specified in the rules, he shall do so in the presence of every party, or person representing a party, to the proceedings who appears at the proceedings or, if the advice is tendered after the Committee have begun to deliberate as to their findings, that every such party or person shall be informed what advice the assessor has tendered ;

(b) that every such party or person shall be informed if in any case the Committee do not accept the advice of the assessor on any such question ;

and such incidental and supplementary provisions as appear to the Lord Chancellor or the Lord Advocate expedient.

(5) The General Council may pay to persons appointed to act as assessors such remuneration as the Council may determine.

(6) The power to make rules under this paragraph shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Service of notifications of decisions

8.—(1) Any notification required by section 7(6), 8(6), 9(3), 10(2) or 13(5) of this Act to be served on a person by the Registrar may be served on him either by delivering it to him or by leaving it at his proper address or by sending it by registered post or by the recorded delivery service.

1889 c. 63.

(2) For the purposes of this paragraph and of section 26 of the Interpretation Act 1889 in its application to this paragraph, a person's proper address shall be his address in the register or, if his last known address differs from his address in the register and it appears to the Registrar that a letter sent to him there is more likely to reach him, his last known address.

(3) For the purposes of this paragraph service of a notification effected by sending it by post shall be deemed to have been effected at the time when the letter containing it would be delivered in the ordinary course of post, and so much of the said section 26 as relates to the time when service is deemed to have been effected shall not apply to a notification sent by post.

Extension of time for appealing

SCH. 4

9. Where any notification required by section 7(6), 8(6) or 10(2) of this Act to be served on a person by the Registrar is served on him by sending it by post then, on an application made at any time by that person, the member of the General Council appointed to act for the purposes of this paragraph, if satisfied that the notification was not received by that person within 14 days of the giving of the decision to which the notification relates, may if he thinks fit by authorisation in writing extend the time within which an appeal under section 11 of this Act may be brought against the decision.

Taking effect of directions for erasure, suspension or conditional registration and of variations of conditions of registration

10.—(1) A direction for erasure, for suspension or for conditional registration given by the Professional Conduct Committee under section 7 of this Act, a direction for suspension or for conditional registration given by the Health Committee under section 8 of this Act and a variation by either Committee of the conditions imposed by a direction for conditional registration under the said section 7 or 8 shall take effect—

- (a) where no appeal under section 11 of this Act is brought against the direction or variation within the time mentioned in subsection (3) of that section, on the expiration of that time;
- (b) where such an appeal is so brought but is withdrawn or dismissed for want of prosecution, on the withdrawal or dismissal of the appeal;
- (c) where such an appeal is so brought and is not withdrawn or dismissed for want of prosecution, if and when the appeal is dismissed.

(2) Sub-paragraph (1) above applies to a direction for erasure given by the General Council under section 10 of this Act as it applies to a direction for erasure given under section 7 of this Act.

(3) Where the time for appealing against a direction or variation such as is mentioned in sub-paragraph (1) or (2) above is extended by an authorisation under paragraph 9 above, sub-paragraph (1) above or that sub-paragraph as applied by sub-paragraph (2) above shall apply to the direction or variation as if the reference in (a) to the time mentioned in section 11(3) of this Act were a reference to that time as so extended; and if the authorisation is given after the expiration of the time mentioned in the said section 11(3), the direction or variation shall be deemed not to have taken effect on the expiration of that time, and any reference in this Act to the time when such a direction takes effect in accordance with this paragraph shall be construed accordingly.

(4) Any reference in this paragraph to a direction for suspension or for conditional registration includes a reference to a direction extending a period of suspension or conditional registration.

SCH. 4

11.—(1) If, while a person's registration is suspended under section 7 or 8 of this Act, a direction is given under subsection (3) of that section, the suspension of his registration shall continue to have effect throughout any period which may intervene between the time when, but for this sub-paragraph, the suspension of his registration would end and the time when the direction takes effect in accordance with paragraph 10 above or an appeal against it under section 11 of this Act is (otherwise than by the dismissal of the appeal) determined.

(2) If, on the determination of an appeal under section 11 of this Act, a direction extending a current period of suspension for a further period takes effect after the time when, but for sub-paragraph (1) above, the current period of suspension would have ended, that further period shall be treated as having started to run from that time.

(3) If, while a person's registration is subject to conditions imposed under section 7 or 8 of this Act, a direction is given under subsection (2) or (4) of that section, the conditions attached to his registration shall continue to attach to it throughout any period which may intervene between the time when, but for this sub-paragraph, his registration would cease to be conditional and the time when the direction takes effect in accordance with paragraph 10 above or an appeal against it under section 11 of this Act is (otherwise than by the dismissal of the appeal) determined.

(4) If, on the determination of an appeal under section 11 of this Act, a direction extending a current period of conditional registration for a further period takes effect after the time when, but for sub-paragraph (3) above, the current period of conditional registration would have ended, that further period shall be treated as having started to run from that time.

Recording of directions for suspension or conditional registration

12. Where a direction under section 7 or 8 of this Act for suspension or for conditional registration takes effect in relation to any person the Registrar shall make a note in the register of the fact that that person's registration is suspended or subject to conditions.

Meaning of "party"

13. In this Schedule "party", in relation to proceedings before the Professional Conduct Committee or the Health Committee, means any person to whose registration the proceedings relate, or any person on whose complaint the proceedings are brought, or the Solicitor to the General Council.

Sections 1(15),
17 and 22(15).

SCHEDULE 5

TRANSITIONAL PROVISIONS FOR OVERSEAS QUALIFIED PRACTITIONERS

PART I

TEMPORARILY REGISTERED PRACTITIONERS

Interpretation

1. In this Part of this Schedule—

"a practitioner to whom this Part applies" means a person who either is registered on the repeal date under section 25 of

the Medical Act 1956 in the register of temporarily registered medical practitioners or was so registered at any time within the period of twelve months ending with that date ; SCH. 5
1956 c. 76.

“ the repeal date ” means the day on which, by virtue of subsection (1) of section 17 of this Act, the said section 25 is repealed ;

“ temporary registration ” means registration under the said section 25 and “ temporarily registered ” shall be construed accordingly.

Temporary preservation of status

2. A practitioner to whom this Part applies whose temporary registration is in force on the repeal date shall, notwithstanding the repeal of the said section 25, continue to be treated until the end of the period specified in the direction by virtue of which he was registered under that section or the earlier termination of the employment to which the direction relates as registered as a fully registered medical practitioner in relation to that employment and to things done or omitted in the course thereof and the expressions “ fully registered person ” and “ fully registered ” in the Medical Acts 1956 to 1969 and this Act shall be construed accordingly.

Transfer to full registration

3. A practitioner to whom this Part applies who on the repeal date either holds or has been selected for an appointment on the staff of a hospital in the United Kingdom which appears to the General Council to be a permanent appointment of consultant status shall be entitled to be registered under section 18 of this Act as a fully registered medical practitioner.

Transfer to limited registration

4.—(1) Subject to sub-paragraph (2) below, a practitioner to whom this Part applies may apply to the General Council to be registered with limited registration under section 22 of this Act by virtue of this paragraph and if he satisfies the Registrar that he is employed or has been selected for employment in the United Kingdom or the Isle of Man as a medical practitioner in one or more approved hospitals or approved institutions the General Council may, if they think fit, direct that he shall be registered under that section as a medical practitioner with limited registration.

(2) An application under this paragraph must be made within the period of six months beginning with the end of the period or last period for which the applicant was temporarily registered or, if the applicant was not temporarily registered on the repeal date, within the period of six months beginning with the repeal date.

(3) In the case of an application under and registration by virtue of this paragraph—

(a) section 22(4) of this Act shall not apply ;

(b) section 22(11) to (14) of this Act shall apply with the omission in subsection (11) of the reference to the permitted period and of the reference to section 23(1) of this Act.

SCH. 5

(4) In this paragraph "approved hospital" and "approved institution" mean respectively a hospital or institution approved for the purposes of section 22 of this Act.

Subsequent grants of limited registration

5. In the case of a practitioner to whom this Part applies who is or has been registered with limited registration for a period by virtue of paragraph 4 above and who applies under section 22 of this Act to be so registered for a further period, the following provisions of that section shall not apply, namely, subsection (4) and, in subsection (11), the reference to the permitted period and to section 23(1) of this Act.

Rights in relation to elections or appointments to the General Council

6.—(1) In relation to practitioners to whom this Part applies who are registered with limited registration, section 1 of this Act shall have effect as if there were substituted for the words "so registered" in subsections (6), (7) and (9) the words "temporarily registered or registered with limited registration."

(2) In relation to practitioners to whom this Part applies who are temporarily registered on the repeal date and are so registered at any time thereafter, section 1 of this Act shall have effect as if the references in subsections (6), (7) and (9) to persons with limited registration were references to temporarily registered persons.

Pending applications under s. 26 of Medical Act 1956

1956 c. 76.

7. Section 26 of the Medical Act 1956 shall, notwithstanding anything in section 17 of this Act, continue to have effect on and after the repeal date for the purposes of the disposal of any application under section 26 by an applicant for registration under section 25 of that Act; and where an order is made under section 26 on the completion of the consideration of an application by virtue of this paragraph, the applicant shall be treated as having applied to be registered under section 22 of this Act and as having satisfied the Registrar of the matters specified in paragraphs (a) and (b) of subsection (1) of that section.

PART II

TRANSITIONAL PROVISIONS FOR OTHER PRACTITIONERS

Interpretation

8. In this Part of this Schedule "the repeal date" means the day on which, by virtue of subsection (2) of section 17 of this Act, sections 18 to 24 and 26 of the Medical Act 1956 are repealed.

Fully registered Commonwealth or foreign practitioners

9. Where a person is, immediately before the repeal date, registered under section 18 of the Medical Act 1956—

- (a) he shall, on and after that day, be treated as having been registered under section 18 of this Act as a fully registered medical practitioner; and

- (b) any qualifications of his registered under section 18 of that Act shall, on and after that day, be treated as having been registered under section 18 of this Act as if they were recognised overseas qualifications.

SCH. 5

Provisionally registered Commonwealth or foreign practitioners

10. Sections 22 and 23 of the Medical Act 1956 shall, notwithstanding their repeal on the repeal date, continue to have effect on and after that day in relation to persons who were registered under section 23 immediately before the repeal; and a person who was so registered shall, on satisfying the General Council of the matters specified in paragraph (a), (b) or (c) of section 22(2), be entitled to be registered under section 18 of this Act as a fully registered medical practitioner and to have registered thereunder as if they were recognised overseas qualifications any qualifications which he would have been entitled to have had registered under section 18 of that Act. 1956 c. 76.

Pending appeals etc. against refusal of registration

11. Section 24 of the Medical Act 1956 shall, notwithstanding its repeal on the repeal date, continue to have effect on and after that day for the purposes of the disposal of any appeal under that section; and where in consequence of a direction given under that section on the determination of an appeal disposed of by virtue of this paragraph a person would, but for the repeal of section 18 or 23 of that Act, be entitled to be registered under the said section 18 or 23 he shall—

- (a) if he would have been entitled to be registered under section 18 of that Act, be entitled to be registered under section 18 of this Act as a fully registered medical practitioner and to have registered thereunder as if they were recognised overseas qualifications any qualifications which he would have been entitled to have registered under section 18 of that Act;
- (b) if he would have been entitled to be registered under section 23, be treated for the purposes of paragraph 10 above as having been registered under section 23 immediately before its repeal.

12. Section 26 of the Medical Act 1956 shall, notwithstanding its repeal on the repeal date, continue to have effect on and after that day for the purposes of the disposal of any application made under that section; and where an order is made under that section on the completion of the consideration of an application by virtue of this paragraph a person who would, but for the repeal of section 18 of that Act, be entitled in consequence of the order to be registered under that section shall be entitled to be registered under section 18 of this Act as a fully registered medical practitioner and to have registered thereunder as if they were recognised overseas qualifications any qualifications which he would have been entitled to have registered under section 18 of that Act.

SCH. 5 *Persons registered under the Medical Practitioners and Pharmacists Act 1947*

1947 c. 11
(11 & 12 Geo. 6).

13. Any person registered as a Commonwealth practitioner or as a foreign practitioner by virtue of section 1 of the Medical Practitioners and Pharmacists Act 1947 at any time between the end of 1956 and the repeal of that Act by section 17 of this Act shall, if his registration is in force immediately before the repeal, be treated on and after the repeal as registered under section 18 of this Act as a fully registered medical practitioner.

PART III

MODIFICATIONS OF ENACTMENTS DURING
TRANSITIONAL PERIOD

Interpretation

14. In this Part of this Schedule "the transitional period" means the period commencing with the day appointed for the coming into operation of sections 22 to 28 of this Act and ending immediately before the day appointed for the coming into operation of sections 18 to 21 of this Act.

Medical Act 1956

1956 c. 76.

15. In section 54 (1) of the Medical Act 1956 (in this Part of this Schedule referred to as "the Act of 1956") the definition of "fully registered person" as substituted by this Act shall have effect during the transitional period as if—

- (a) for the reference to section 18 of this Act there were substituted a reference to section 18 of the Act of 1956; and
- (b) the words "or section 21(5) of the Medical Act 1978" and "or under the said section 21" in paragraph (a) of the definition were omitted.

Medical Act 1969

1969 c. 40.

16. In section 3 of the Medical Act 1969 (in this Part of this Schedule referred to as "the Act of 1969"), subsection (2) as substituted by this Act shall have effect during the transitional period as if—

- (a) for references to persons entitled or directed to be registered under section 18 of this Act there were substituted references to persons entitled or directed to be registered under section 18 of the Act of 1956; and
- (b) the references to persons directed to be registered under section 21 of this Act were omitted.

17. Section 7 of the Act of 1969 shall have effect during the transitional period as if—

- (a) in subsection (1), as amended by this Act, the reference to Part II of the Act of 1956 included a reference to Part III of that Act; and
- (b) subsection (3), as so amended, included a reference to an application for registration of persons or qualifications under Part III of the Act of 1956.

18. Section 8(1) of the Act of 1969 shall have effect during the transitional period as if in paragraph (a), as substituted by this Act, the reference to Part II of the Act of 1956 included a reference to Part III of that Act.

SCH. 5

This Act

19. Sections 22 (13) and 25 of this Act shall have effect during the transitional period as if for the references to section 18 of this Act there were substituted references to section 18 of the Act of 1956.

20. Section 26 (1) of this Act shall have effect during the transitional period as if paragraph (a) were omitted.

21. Section 28 of this Act shall have effect during the transitional period as if—

- (a) in subsection (2), paragraphs (a) and (b) were omitted and in paragraph (c) for the reference to section 18 of this Act there were substituted a reference to section 18 of the Act of 1956 ; and
- (b) in subsection (3), paragraphs (a) and (b), and in paragraph (c) the references to paragraphs (a) and (b) of subsection (2), were omitted.

22. Paragraph 3 above shall have effect during the transitional period as if for the reference to section 18 of this Act there were substituted a reference to section 18 of the Act of 1956.

SCHEDULE 6

Section 31.

MINOR AND CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

PART I

MINOR AND CONSEQUENTIAL AMENDMENTS RELATING TO
EDUCATIONAL FUNCTIONS

Medical Act 1956

1. In the following provisions of the Medical Act 1956 (in this Schedule referred to as "the Act of 1956"), that is to say—

- section 8(1),
- section 9(1) to (4),
- section 10(2), (3), (5) and (6),
- section 11(3),
- section 12(1),
- section 13(1), (2) and (4),
- section 15(8) and (9), and
- section 16(3),

for the words "the General Council" or "the Council" there shall be substituted the words "the Education Committee".

2. In section 9(1) of the Act of 1956 the words "not being members of the Council" shall be omitted.

CH. 6

3.—(1) In section 10 of the Act of 1956 the amendments specified in this paragraph shall be made.

(2) Subsection (1) shall be omitted.

(3) In subsection (3), for the words preceding “may appoint” there shall be substituted the words “For the purpose of securing the maintenance of the prescribed standard of proficiency the Education Committee”.

(4) In subsection (4), for the words preceding “may attend” there shall be substituted the words “Any person deputed for the purpose by the Education Committee”.

4. In section 11(3) of the Act of 1956, the words “in medicine, surgery and midwifery” shall be omitted.

5. In section 13 of the Act of 1956 the following amendments shall be made—

(a) in subsection (1), for the words from “secure” to “profession” there shall be substituted the words “equip persons going through the course and examinations with the prescribed knowledge and skill”; and

(b) in subsection (2), for the words from “in medicine” to “insufficient” there shall be substituted the words “required from candidates at any qualifying examination does not conform to the prescribed standard of proficiency”.

6. In section 16A of the Act of 1956, for paragraph (b) there shall be substituted the following paragraph—

“(b) is the holder of a primary United Kingdom or primary Irish qualification and also of a qualification granted outside the United Kingdom and the Republic of Ireland which is recognised by the General Council for the purposes of this section as furnishing a sufficient guarantee of the possession of knowledge and skill corresponding with the prescribed knowledge and skill”.

7. In section 27(1) of the Act of 1956, for the words “medical or surgical” there shall be substituted the word “medical”.

8.—(1) In section 49 of the Act of 1956 the amendments specified in this paragraph shall be made.

(2) In subsection (1)—

(a) the words “the General Council”, where first appearing, shall be omitted;

(b) at the beginning of paragraph (b) there shall be inserted the words “the Education Committee” and in paragraph (b) for the words “a sufficient” there shall be substituted the words “the prescribed”;

(c) at the beginning of paragraph (c) there shall be inserted the words “the General Council or the Education Committee”; and

(d) after the words "opinion to the General Council" there shall be inserted the words "or that Committee, as the case requires: ".

SCH. 6

(3) After subsection (2) there shall be added the following subsection—

"(3) Subsection (2) above shall apply to the Education Committee as it applies to the General Council."

9. In section 54(1) of the Act of 1956 there shall be inserted at the appropriate places in alphabetical order the following definitions—

"the Education Committee" means the Education Committee of the General Council ;

"the prescribed knowledge and skill" has the meaning assigned to it by section 15(6) of the Medical Act 1978 ;

"a prescribed pattern of experience" has the meaning assigned to it by section 15(6) of the Medical Act 1978 ;

"the prescribed standard of proficiency" has the meaning assigned to it by section 15(6) of the Medical Act 1978 ;.

10. In Part II of Schedule 3 to the Act of 1956, in point 3 under the heading "*Luxembourg*", for the words "General Council" there shall be substituted the words "Education Committee".

Medical Act 1969

11. In section 11(4) of the Medical Act 1969 (in this Schedule 1969 c. 40. referred to as "the Act of 1969") for the words from "medicine, surgery and midwifery" to "or surgery" there shall be substituted the words "any branch or branches of medicine".

12. In section 18(1) of the Act of 1969 the following amendments shall be made—

(a) for the words "the General Council" there shall be substituted the words "the Education Committee" ;

(b) the words "in medicine, surgery and midwifery" shall be omitted ;

(c) after the word "primary" there shall be inserted the words "United Kingdom" ; and

(d) for the words from "is or will" to "Act of 1956" there shall be substituted the words "does or will conform to the prescribed standard of proficiency" and for the words "that Act" there shall be substituted the words "the Act of 1956".

PART II

MINOR AND CONSEQUENTIAL AMENDMENTS RELATING TO REGISTRATION OF OVERSEAS QUALIFIED PRACTITIONERS

Medical Act 1956

13. For subsection (4) of section 8 of the Act of 1956 there shall be substituted the following subsection—

"(4) A person registered under section 7 or 17 of this Act who holds or obtains any recognised overseas qualification

SCH. 6

(within the meaning of the Medical Act 1978) or any other qualification for the time being registrable as a further qualification by virtue of section 19(2) of that Act shall be entitled to have the qualification registered."

14. In section 16A of the Act of 1956, for the words from "it shall be sufficient" to the end there shall be substituted the words "it shall be sufficient for him to satisfy the General Council that he has acquired experience of the practice of medicine, whether in the course of employment in the United Kingdom or in the course of employment outside the United Kingdom, which is not less extensive than that required for a certificate under the said section fifteen."

15. Section 33 of the Act of 1956 shall, until its repeal by this Act, apply to a person registered with limited registration whether or not the circumstances are such that he falls within the meaning in that Act of the expression "fully registered person"; and, in relation to a person who is registered with limited registration, references in Part V of the Act of 1956 and section 15 of the Act of 1969 to "the register" are references to the register of medical practitioners with limited registration.

16. In section 57 of the Act of 1956, subsection (2) shall be omitted.

Medical Act 1969

17. In section 1(2)(b) of the Act of 1969, the words "or, as regards persons temporarily registered" to the end shall be omitted.

18.—(1) In section 3 of the Act of 1969 the amendments specified in this paragraph shall be made.

(2) For subsection (2) there shall be substituted the following subsection—

"(2) The register shall consist of four lists—

- (a) one, to be called the principal list, of persons entitled to be registered under section 7, 17 or 23 of the Act of 1956, or entitled or directed to be registered under section 18 of the Act of 1978 or directed to be registered under section 21 of that Act, but not entitled to be included in the overseas list mentioned in paragraph (b) below;
- (b) one, to be called the overseas list, of persons entitled or directed to be so registered who by virtue of regulations made under section 4 of this Act are for the time being entitled to be included in that list by reason of residence overseas;
- (c) one, to be called the visiting overseas doctors list, of persons from time to time directed to be registered under section 26 of the Act of 1978; and
- (d) one, to be called the visiting EEC practitioners list, of persons entitled to be registered from time to time under Article 7 of the Medical Qualifications (EEC Recognition) Order 1977."

(3) Subsections (3) and (7) shall be omitted.

19. In section 4 of the Act of 1969, the following amendments shall be made—

SCH. 6

(a) in subsection (3), for the words from “those registered as Commonwealth practitioners” to the end there shall be substituted the words “or under section 21 of the Act of 1978”;

(b) subsection (7) shall be omitted.

20. In section 6 of the Act of 1969, for subsection (3) there shall be substituted the following subsection—

“(3) Where, on an application in that behalf by any person, a direction is given—

(a) that he be registered with limited registration under section 22 of the Act of 1978; or

(b) for his name to be erased from the register of medical practitioners with limited registration by virtue of section 23(1) of that Act,

the General Council may include therein a direction that the right to registration or erasure conferred thereby shall be subject to the payment by him of such fee as may be specified in the direction.”

21.—(1) In section 7 of the Act of 1969 the amendments specified in this paragraph shall be made.

(2) In subsection (1), for the words “conferred by the Act of 1956” there shall be substituted the words “of persons or qualifications conferred by Part II of the Act of 1956 and any right to registration of qualifications conferred by the Act of 1978”.

(3) For subsection (2) there shall be substituted the following subsection—

“(2) An application for registration of persons or qualifications under section 7 of the Act of 1956 made by virtue of subsection (1)(a) of that section, for registration of qualifications under section 8 of that Act or for registration of persons or qualifications under section 17 of that Act shall be made to the registrar of one of the branch councils.”

(4) In subsection (3), for the words from “Any” to “1956” there shall be substituted the words “An application for registration of persons or qualifications under section 7 of the Act of 1956 made by virtue of subsection (1)(b) of that section, any application for registration of qualifications under any provision of the Act of 1978”.

(5) In subsection (4), for the words “section 7, 17, 18 or 23” there shall be substituted the words “section 7 or 17”.

(6) In subsection (5), for the words “Schedule 3” there shall be substituted the words “Part I of Schedule 3”.

(7) In subsection (7), the words “temporary registration under section 25 of the Act of 1956 or to” shall be omitted.

SCH. 6

22. In section 8(1) of the Act of 1969, for paragraphs (a) to (c) there shall be substituted the following paragraphs—

- “(a) the registration of a person or qualification under any provision of Part II of the Act of 1956 ; or
- (b) the registration of a qualification under any provision of the Act of 1978 ;”.

23.—(1) In section 9 of the Act of 1969 the amendments specified in this paragraph shall be made.

(2) In subsection (3), for the words “section 7, 17, 18 or 23 of the Act of 1956” there shall be substituted the words “section 7, 17 or 23 of the Act of 1956 or under section 18 or 21 of the Act of 1978”.

(3) In subsection (4)(a)—

- (a) after the words “in the register” there shall be inserted the words “or the register of medical practitioners with limited registration” ;
- (b) the words “or the register of temporarily registered medical practitioners” shall be omitted.

(4) In subsection (4)(b)—

- (a) after the words “this Act” there shall be inserted the words “or under any provision of the Act of 1978” ;
- (b) the words “or section 25 of the Act of 1956” shall be omitted ;
- (c) after the words “the register” there shall be inserted the words “or with limited registration under section 22 of the Act of 1978” ;
- (d) the words “or temporarily under the said section 25” shall be omitted.

24. Section 11(2) of the Act of 1969 shall be omitted.

25. Section 12 of the Act of 1969 shall cease to have effect.

26. In section 19 of the Act of 1969 the following amendments shall be made—

- (a) after the words “persons registered under” there shall be inserted the words “any provision of the Act of 1978 or of” ;
- (b) the words “(including those temporarily registered under section 25)” shall be omitted.

27. In Schedule 1 to the Act of 1969, paragraphs 3 and 4 shall be omitted.

28. In Schedule 3 to the Act of 1969, paragraphs 2, 3, 6, 7 and 10 shall be omitted.

PART III

SCH. 6

OTHER MINOR AND CONSEQUENTIAL AMENDMENTS

Medical Act 1956

29. In section 7(1)(a) of the Act of 1956, for the words "of the primary United Kingdom or Irish qualifications specified in section 7A below" there shall be substituted the words "primary United Kingdom or primary Irish qualifications".

30. In section 7(3) of the Act of 1956, for the words "primary qualification granted by a university or other body in the Republic of Ireland" there shall be substituted the words "primary Irish qualification" and for the words "so registered" there shall be substituted the words "registered in that register or any register of medical practitioners of the Republic of Ireland kept in pursuance of any law of the Republic of Ireland which replaces that law".

31. In section 7A of the Act of 1956, subsection (1) shall be omitted.

32. For subsection (2) of section 8 of the Act of 1956 there shall be substituted the following subsections—

"(2) In this Act 'additional qualification' means any qualification granted in a member State of the Communities other than a qualification specified in Part I or Part II of Schedule 3 to this Act.

(3) A person registered under section 7 or 17 of this Act shall be entitled to have registered any qualification specified in Part I or Part II of Schedule 3 to this Act which he obtains in addition to the qualification or qualifications by virtue of which he was so registered."

33. In section 10 of the Act of 1956 the following amendments shall be made—

(a) in subsection (2), for the words "body granting any primary" there shall be substituted the words "body in the United Kingdom or the Republic of Ireland granting any primary United Kingdom qualification, primary Irish qualification";
and

(b) in subsection (4), for the words "examination to be gone through in order to obtain a primary" there shall be substituted the words "examination held in the United Kingdom or the Republic of Ireland which has to be gone through in order to obtain a primary United Kingdom qualification, primary Irish qualification".

34. In section 11 of the Act of 1956 the following amendments shall be made—

(a) for subsections (1) and (2) there shall be substituted the following subsections—

"(1) Subject to the provisions of this Act, a qualifying examination for the purposes of this Part of this Act is

SCH. 6

an examination held by any of the bodies or combinations of bodies specified in subsection (2) below for the purpose of granting one or more primary United Kingdom or primary Irish qualifications.

(2) The bodies and combinations of bodies entitled to hold qualifying examinations are—

- (a) any of the Universities of Oxford, Cambridge, London, Manchester, Birmingham, Liverpool, Leeds, Sheffield, Newcastle, Bristol, Nottingham, Southampton, Wales, Glasgow, Aberdeen, Edinburgh, Dundee, the Queen's University of Belfast, the University of Dublin and the National University of Ireland, or a combination of any two or more of the universities specified in this paragraph ;
 - (b) a combination of the Royal College of Physicians of London and the Royal College of Surgeons of England ;
 - (c) a combination of the Royal College of Physicians of Edinburgh and the Royal College of Surgeons of Edinburgh and the Royal College of Physicians and Surgeons of Glasgow ;
 - (d) the Society of Apothecaries of London ;
 - (e) with the approval and under the directions of the Education Committee, a combination of any two or more of the bodies specified in paragraphs (b), (c) and (d) above ;
 - (f) a combination of the Royal College of Physicians of Ireland and the Royal College of Surgeons in Ireland.” ;
- (b) in subsection (3), for the words from “registration in the Republic” to “1927” there shall be substituted the words “registration in the register of medical practitioners of the Republic of Ireland kept in pursuance of any law of the Republic of Ireland for the time being in force” ; and
- (c) subsection (4) shall be omitted.

35. In section 12(1) of the Act of 1956 the following amendments shall be made—

- (a) for the words “granting primary qualifications” there shall be substituted the words “specified in the first column of Part I of the Third Schedule to this Act” ; and
- (b) for the words “such qualifications” there shall be substituted the words “primary United Kingdom or primary Irish qualifications”.

36. In section 13 of the Act of 1956, the following amendments shall be made—

- (a) in subsection (1), after the word “primary” there shall be inserted the words “United Kingdom or primary Irish” ; and

(b) in subsection (3), the words from "and while such an order" to the end shall be omitted.

SCH. 6

37. In section 15(7)(a) of the Act of 1956, for the words "a qualifying examination" there shall be substituted the words "an examination".

38. In section 15(8) of the Act of 1956, for the words "or a body acting on behalf of that Council" there shall be substituted the words "or any body constituted under that law as successor to that Council or by any body acting on behalf of that Council or that Council's successor".

39. In section 16(4) of the Act of 1956, for the words "qualifications registrable under this Part of this Act granted by a university or other body in the Republic of Ireland" there shall be substituted the words "primary Irish qualifications" and for the words "or a body acting on behalf of that Council" there shall be substituted the words "or any body constituted under the said law as successor to that Council or by any body acting on behalf of that Council or that Council's successor".

40. In section 17(4) of the Act of 1956, for the words "qualification registrable under this Part of this Act and granted by a university or other body in the Republic of Ireland" there shall be substituted the words "primary Irish qualification".

41. In section 28(2) of the Act of 1956, for the words "British subject" there shall be substituted the words "Commonwealth citizen".

42.—(1) In section 39 of the Act of 1956 the amendments specified in this paragraph shall be made.

(2) In subsection (2), for the words following "disciplinary action" there shall be substituted the words "affecting the registration in the register of a person registered also in the register of medical practitioners of the Republic of Ireland is taken by the Disciplinary Committee".

(3) After subsection (2), there shall be added the following subsection—

"(3) This section shall have effect—

(a) on and after the establishment of a Professional Conduct Committee under the Medical Act 1978 as if the references to the Disciplinary Committee were references to the Professional Conduct Committee or, during any period when both Committees are in existence, to the Disciplinary Committee or the Professional Conduct Committee; and

(b) on and after the establishment by any law of the Republic of Ireland of a body to succeed the Medical Registration Council, as if the references to that Council were references to that Council's successor."

SCH. 6

43. In section 49(1)(c) of the Act of 1956, for the words "this Act" there shall be substituted the words "the Medical Acts 1956 to 1978".

44. At the end of the proviso to section 49(1) of the Act of 1956 there shall be added the words "or paragraph 7 of Schedule 4 to the Medical Act 1978".

45. In section 49(2) of the Act of 1956, for the words "this Act" there shall be substituted the words "the Medical Acts 1956 to 1978".

46. In section 50(1) and (2) of the Act of 1956, for the words "this Act" there shall be substituted the words "the Medical Acts 1956 to 1978".

47. Section 51 of the Act of 1956 shall apply to a copy of an order of the Professional Conduct Committee or the Health Committee under section 9 of this Act or a direction of the General Council under section 10 of this Act as it applies to a copy of any instrument mentioned in that section.

48. In section 52 of the Act of 1956 the following amendments shall be made—

(a) in subsections (1) and (2), after the words "enactment" there shall be inserted the words "passed before 1st January 1979" and after the word "shall" there shall be inserted the words "unless the contrary intention appears"; and

(b) after subsection (2) there shall be added the following subsection—

"(3) In any Act passed on or after 1st January 1979 the expression 'registered medical practitioner' shall, unless the contrary intention appears, be construed to mean a fully registered person within the meaning of the Medical Act 1956."

49. In section 54(1) of the Act of 1956, for the definitions of "appointed member" "elected member", "fully registered person" and "fully registered" and "the General Council" there shall be substituted respectively the following—

"appointed member" has the same meaning as it has in the Medical Act 1978;

"elected member" has the same meaning as it has in the Medical Act 1978;

"fully registered person" means a person for the time being registered as a fully registered medical practitioner under section 7 of this Act or section 18 or 26 of the Medical Act 1978 or as a visiting EEC practitioner under the Medical Qualifications (EEC Recognition) Order 1977, and—

(a) so far as mentioned in section 17(3) of this Act or section 21(5) of the Medical Act 1978, but not further, includes a person for the time being provisionally registered under section 17 or 23 of this Act or under the said section 21;

SCH. 6

(b) in relation to such employment and such things as are mentioned in paragraphs (a), (b) and (c) of section 22(13) of the Medical Act 1978, but not in relation to other matters, includes a person for the time being registered under the said section 22 with limited registration ; and “ fully registered ” shall be construed accordingly ;

“ the General Council ” means the General Medical Council ; and for the definition of “ primary qualification ” there shall be substituted the following—

“ primary Irish qualification ” means any of the qualifications specified in the second column of Part I of the Third Schedule to this Act granted by a university or other body in the Republic of Ireland specified in relation to that qualification in the first column of that Part ;

“ primary United Kingdom qualification ” means any of the qualifications specified in the second column of Part I of the Third Schedule to this Act granted by a university or other body in the United Kingdom specified in relation to that qualification in the first column of that Part.

50. Section 56(3) of the Act of 1956 shall cease to have effect.

Medical Act 1969

51. In section 3(4) of the Act of 1969, for the words “ the Act of 1956, this Act ” there shall be substituted the words “ the Medical Acts 1956 to 1978 ”.

52. In section 4(6)(a) of the Act of 1969, for the words “ the Act of 1956 or this Act ” there shall be substituted the words “ the Medical Acts 1956 to 1978 ”.

53. In section 5(1)(c) of the Act of 1969, for the words “ the Act of 1956 or this Act ” there shall be substituted the words “ the Medical Acts 1956 to 1978 ”.

54. In section 6(2) of the Act of 1969, for the words “ section 34 of the Act of 1956 ” there shall be substituted the words “ section 12 of the Act of 1978 ”.

55. In section 7(5)(a) of the Act of 1969, for the words “ that Act and this Act ” there shall be substituted the words “ the Medical Acts 1956 to 1978 ”.

56. In section 7(5)(b) of the Act of 1969, after the word “ primary ” there shall be inserted the words “ United Kingdom or primary Irish ”.

57. In section 7(7) of the Act of 1969, for the words “ section 34 of that Act ” there shall be substituted the words “ section 12 of the Act of 1978 ”.

58. In section 8(2) of the Act of 1969, for the words “ the Act of 1956 or this Act ” there shall be substituted the words “ the Medical Acts 1956 to 1978 ”.

SCH. 6

59. In section 8(3) of the Act of 1969, for the words "the branch council for Scotland or Ireland" in paragraph (a) there shall be substituted the words "a branch council but is not also the Registrar" and the words "or the registrar of the branch council for England and Wales" in paragraph (b) shall be omitted.

60. In section 8(5) of the Act of 1969, for the words "section 34 of the Act of 1956" there shall be substituted the words "section 12 of the Act of 1978".

61. In section 9(1) and (2) of the Act of 1969 there shall be added at the end the words "and those whose registration is for the time being subject to conditions".

62. In section 10(3) of the Act of 1969, for paragraphs (a) and (b) there shall be substituted the words "any expenses incurred by the branch council with the approval of the General Council".

63. In section 11(3) of the Act of 1969, the words from "in sections 11(1)" to the end shall be omitted.

64. In section 11(4) of the Act of 1969, for the words "Act of 1956 and this Act" there shall be substituted the words "Medical Acts 1956 to 1978".

65. In section 21(1) of the Act of 1969 the following definition shall be inserted after the definition of the Act of 1956, that is to say—

"the Act of 1978" means the Medical Act 1978 ;.

66. In paragraph 8 of Schedule 3 to the Act of 1969, after the word "primary" there shall be inserted the words "United Kingdom or primary Irish".

SCHEDULE 7

Section 31.

REPEALS

Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6 c.11.	The Medical Practitioners and Pharmacists Act 1947.	The whole Act.
14 Geo. 6 c. 29.	The Medical Act 1950.	The whole Act.
4 & 5 Eliz. 2 c. 76.	The Medical Act 1956.	Sections 1 to 6. Section 7A(1). In section 9(1) the words "not being members of the Coun- cil". Section 9(5). Section 10(1) and (7). In section 11(3) the words "in medicine, surgery and mid- wifery". Section 11(4). Section 12(2). In section 13(3), the words from "and while such an order" to the end. Section 14. Section 15(4) and (5). In section 17(3), the words from "and so far" to "1950". Sections 18 to 26. Section 28(1)(b) and (3). Section 30. Sections 32 to 38 and 40. Section 48. In section 49(1) the words "the General Council" where first appearing, paragraph (a) and, in the proviso, the words "twenty-two, twenty-five, thirty-two, thirty-eight" and "or section forty-seven". In section 51, the words from "or under subsection (1)" to "section 11 of this Act". In section 54(1), the definitions of "nominated member" and "party". Section 54(3). Section 56(3). In section 57, subsections (2), (5), (6), (11) and (12). Schedule 1. In Part I of Schedule 3, in column 2, the words "licen- tiate in midwifery". Schedule 4.

SCH. 7

Chapter	Short Title	Extent of Repeal
1966 c. 13.	The Universities (Scotland) Act 1966.	In Schedule 6, paragraph 18 and, in paragraph 19, the words preceding "the University of".
1969 c. 40.	The Medical Act 1969.	In section 1(2)(b), the words from "or, as regards persons" to the end. In section 3, subsections (3) and (7). Section 4(7). In section 7(7), the words from "temporary" to "or to". In section 8(3)(b), the words from "or the registrar" to "Wales". In section 9(4), in paragraph (a) the words "or the register of temporarily registered medical practitioners" and in paragraph (b) the words "or section 25 of the Act of 1956" and the words "or temporarily under the said section 25". Section 10(7). Section 11(2). In section 11(3), the words from "in sections 11(1)" to the end. Sections 12 to 17 except, in section 13, subsection (2)(c). In section 18, in subsection (1) the words "in medicine, surgery and midwifery" and subsection (3). In section 19, the words "(including those temporarily registered under section 25)". In Schedule 1, paragraphs 1, 3 to 5 and 9 to 12. In Schedule 3, paragraphs 1 to 4, 6, 7 and 9 to 11.